

## **STANDARD**

**[Repealed 01/22]**

### **EXCERPTS FOR CREAMS ACTIVITIES AND TO CONSTITUTE BUREAU OF CONFECTION IN INDIA**

5. 11. The eligible investment fund referred to in section 80C, means a fund by  
incorporated or incorporated or registered outside India, which collects funds from  
its members for investing it for the benefit and fulfil the following conditions:

- (a) The fund is not a person resident in India;
- (b) The fund is:
  - (i) a resident of a country or a specified territory in the schedule annexed  
under section 10 of the Income Tax Act, 1961 or (ii) has been deemed to be  
so;
  - (ii) established or incorporated or registered in a country or a specified  
territory as referred to in (b)(i);
- (c) The aggregate participation or investment in the fund, directly or indirectly  
considered in India, does not exceed 10% of the corpus of the fund as on the  
1st April and the 1st October of the year year subject to the conditions that:
  - (i) for the purpose of calculation of such aggregate participation or  
investment in the fund, any contribution made for the eligible fund  
throughout during the first three years of operation of the fund, not  
exceeding twenty-five crore rupees, shall not be taken into account;
  - (ii) where the aggregate participation or investment in the  
fund exceeds 10% on the 1st April or the 1st October of the year year  
the excess amount invested in this category shall be deemed to be not the  
fund, if it is established before the end of the 1st April or the 1st  
October of such year year;
- (d) The fund and its activities are subject to applicable taxation provisions  
applicable in the country or specified territory where such fund is  
incorporated or incorporated or is a resident;
- (e) The fund has a minimum of twenty-five members who are directly or  
indirectly, not connected persons;
- (f) not members of the fund along with connected persons should not have any  
participation, interest, directly or indirectly, in the fund exceeding 10%;
- (g) The aggregate participation interest, directly or indirectly, of any or these  
members along with the connected persons in the fund, shall be less  
than 10%;
- (h) The fund shall not carry more than 20% of its corpus in any asset;
- (i) The fund shall not trade or speculate in the primary market;
- (j) The monthly average of the corpus of the fund shall not be less than one  
hundred crore rupees subject to the following:
  - (i) if the fund has been established or incorporated in the year year  
then corpus of fund shall not be less than one hundred crore rupees

at the end of twelve months from the last day of the month of the establishment or incorporation date.

(iv) This clause shall not apply to a fund which has been wound up in the last year.

(v) The fund shall put every asset under control and manage, directly or indirectly, any business in India.

(vi) The fund is required to engage, as and so forth, subject to conditions or provisions incorporated in India not from any person acting on the behalf of the sponsor, since provision is made for incorporation in India after these the provisions incorporated by the act the fund manager on the behalf.

(vii) The commission paid to the fund for acting the fund manager to support of fund management's activity undertaken by him on the behalf to that to be then the amount calculated in such manner as may be provided.

11. This regulation except the part graph (1)(a), (1)(vii) shall not apply to any

(a) an institution fund set up by the Government or the Central Bank or Foreign State or a sovereign fund; or

(b) such other fund as the Central Government may, by notification, specify as they behalf subject to conditions, if any.

12. The eligible fund manager, referred to in section 10(12), in respect of a eligible investment fund, shall not provide to be engaged in the activity of fund management with the following conditions:-

(a) the person is not an employee of the eligible investment fund or person related person of the fund;

(b) the person is engaged as a fund manager or an investment adviser or consultant or the the regulated or approved;

(c) the person is acting as the strategy manager of the business as a fund manager;

(d) the person along with his company or person sufficient to that that, directly or indirectly, to more than 25% of the profit accounting or holding in the eligible investment fund from the transactions carried out by the fund through the fund manager.

13. Every eligible investment fund shall, in respect of the activities in a last year, for which the activity date from the end of the last year, is required to the provisions from to the provided information and history concerning information relating to the activities of the fund are specified in this Schedule, and also provide such other relevant information or documents, as may be provided.

14. The provisions of this Schedule shall apply, as far as possible, and in such manner as the fund may provide in this behalf.

15. The Central Government may, by notification, specify that any one or more of the conditions specified in sub paragraph (1) or (2) shall not apply or shall apply with such modifications, as specified in case of an eligible investment fund and its eligible fund manager, if:-

- (ii) the eligible fund manager submitted its application to Financial Services Commission; and
- (iii) has discontinued the operations for or before the 31st March, 1993.

## **2. Table Schedule:**

- (a) "associate" means an entity in which a director or a member or a partner or a member or a fund manager of the investment fund, or a director or a partner or a member or a manager of the fund manager of such fund, holds either individually or collectively, share or interest, being more than 10% of the share capital or interest, as the case may be;
- (b) "assumed profit" shall have the meaning assigned to it in section 146B;
- (c) "profit" means the total income of funds raised for the purpose of an investment by the eligible investment fund as on a particular date;
- (d) "policy" means any policy or scheme or capital investment fund made or introduced; and
- (e) "specified regulations" means the Securities and Exchange Board of India (Fund Managers) Regulations, 1992 or the Securities and Exchange Board of India (Investment Advisers) Regulations, 1993, or such other regulations made under the Securities and Exchange Board of India Act, 1992 (15 of 1992), including the notified in this regard.

## **SCHEDULE II**

(See section 11)

### **INCOME NOT TO BE EXCLUDED IN TOTAL NET GAIN**

In computing the total income of a person for a tax year, the income mentioned in column B of the Table below shall not be excluded, subject to fulfilment of the conditions mentioned in column C of the said Table, and the provisions word in columns B and C of the said Table, shall have the meaning respectively assigned to them in the Notes below the said Table:

### **TABLE**

| Sl. No. | Income which is excluded or not                                                                              | Condition                                                                                                                                                                                                                                                   |
|---------|--------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                            | C                                                                                                                                                                                                                                                           |
| 1.      | Agricultural income                                                                                          | Nil.                                                                                                                                                                                                                                                        |
| 2.      | Any sum received under a life insurance policy including the sum allocated by way of bonus to a policyholder | (a) The insurance policy, issued during the period mentioned in column B of the Table below, except where such sum is received on the death of a person, under a life insurance policy issued by, and, fulfil the conditions mentioned in column C thereof. |

| Sl. No. | Activities/ work to be completed for Annual Insurance | Classification |                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|---------|-------------------------------------------------------|----------------|---------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sl.     | Sl.                                                   | Sl.            | Period and date of Insurance policy   | Classification                                                                                                                                                                                                                                                                                                                                                                                                                           |
|         |                                                       | 1.             | 1st April, 2021 to 31st March, 2021   | Premium for motor insured rates to a 10%.                                                                                                                                                                                                                                                                                                                                                                                                |
|         |                                                       | 2.             | 1st April, 2021 to 31st March, 2021   | Premium for non-motor insured rates to a 10%.                                                                                                                                                                                                                                                                                                                                                                                            |
|         |                                                       | 3.             | 1st April, 2021 to 31st January 2022  | Premium for non-motor insured rates to a 10% for special policy, and a 10% for other policies.                                                                                                                                                                                                                                                                                                                                           |
|         |                                                       | 4.             | 1st February 2021 to 31st March, 2021 | <p>Least Liked Insurance policy:-</p> <p>(a) premium for motor insured rates to a 10% for special policy, and a 10% for other policies and</p> <p>(b) aggregate of premiums for all such policies for any of the months during the term of all of such policies to a T 2,50,000.</p> <p>Where there least Liked Insurance policy:-</p> <p>Premium for motor insured rates to a 10% for special policy, and a 10% for other policies.</p> |
|         |                                                       | 5.             | From after the 1st April, 2021.       | <p>Least Liked Insurance policy:-</p> <p>(a) premium for motor insured rates to a 10% for special policy, and a 10% for other policies and</p>                                                                                                                                                                                                                                                                                           |

| Alt.<br>No. | Assessors' report on the<br>inclusion of the fund<br>in the plan | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|-------------|------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A           | B                                                                | C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | D                                              | E                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|             |                                                                  | Alt.<br>No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Period of inclusion<br>of the fund in the plan | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|             |                                                                  | 1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 2                                              | 3                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|             |                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                | <p>(i) aggregate of pro-visions for all such policies (policy of the Insurer that the Insurer of all of such policies) as of 31.12.2000.</p> <p>Other than that Insurer's insurance policy...</p> <p>(ii) provision for state-owned policy as of 31.12.2000 for special policy and 31.12.2000 for other policies and</p> <p>(iii) aggregate of pro-visions for all such policies (policy of the Insurer that the Insurer of all of such policies) as of 31.12.2000.</p> |
|             |                                                                  | <p>(b) the constitution of aggregate provisions of F 3,00,000 and F 3,00,000 mentioned in paragraph (a) shall apply to the Insurer's policy issued on or after the 1st April, 1997 by the Government of Karnataka (Insurance Company) (Insurance Co.)</p> <p>(c) the following shall and be eligible for inclusion in the Insurer's policy:</p> <p>(i) aggregate of such policies (policy of the Insurer that the Insurer of all of such policies) as of 31.12.2000.</p> <p>(ii) state-owned policy as of 31.12.2000.</p> |                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

| All<br>No. | Activities not to be<br>included in total<br>income                                                                                                                                                       | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A          | B                                                                                                                                                                                                         | C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|            |                                                                                                                                                                                                           | <p>that—For purposes of this section, the Secretary must consult with the persons approved by the Central Government, which shall be binding on the Income tax authorities until the contrary and shall not be subject to the Board under this clause shall be laid before each House of Parliament.</p>                                                                                                                                                                                                                                                                                                                           |
| 1          | <p>Any payments from a provident fund in which the Provident Funds Act, 1923 (18 of 1923) applies, or from any other provident fund set up by the Central Government and notified by it as such fund.</p> | <p>(a) The amount by way of interest accrued during the year shall not be eligible for inclusion from total income when—</p> <p>(i) it is attributable to the contributions (including aggregate thereof) made by that person on or after the 1st April, 1921;</p> <p>(ii) such contribution exceeds—</p> <p>(A) ₹ 2,00,000 in a year in such fund where no contribution is made by the employer of such person;</p> <p>(B) ₹ 2,50,000 in other cases; and</p> <p>(b) the amount of income not to be included from total income as referred to in clause (a) shall be computed in such manner as may be provided.</p>              |
| 2          | <p>The unrequited loan given to an employee participating in a share appreciation fund in the manner provided in paragraph 8 of Part B of the Schedule 22.</p>                                            | <p>(a) The amount by way of interest accrued during the year shall not be eligible for inclusion from total income when—</p> <p>(i) it is attributable to contributions (including aggregate thereof) made by that person on or after the 1st April, 1921; and</p> <p>(ii) such contribution exceeds—</p> <p>(A) ₹ 5,00,000 in a financial year in such fund where no contribution is made by the employer of such person; or</p> <p>(B) ₹ 2,50,000 in other cases; and</p> <p>(b) the amount of income not to be included from total income as referred to in clause (a) shall be computed in such manner as may be provided.</p> |



| Sl. No. | Assets not to be included in Asset Transfer                                                                                                                                                                               | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sl.     | Sl.                                                                                                                                                                                                                       | Sl.                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 20      | Any payment made, whether or made or to be made for any asset or interest.                                                                                                                                                | Such payment is made: <ul style="list-style-type: none"> <li>(a) in pursuance of any award instituted in the public interest by the Central Government or any State Government or instituted by any other body and approved by the Central Government or that body or</li> <li>(b) as is required by the Central Government or any State Government for such purposes as may be approved by the Central Government or that body in public interest.</li> </ul> |
| 21      | Amount by way of loan, interest, provision for contingencies or other payment to such institutions, funds, deposits, corporations, savings institutions, other institutions owned by the Central Government and deposits. | Such institutions and deposits are notified by the Central Government, subject to such conditions and limits as specified therein.                                                                                                                                                                                                                                                                                                                             |
| 22      | Interest on Gold Deposit Bonds issued under the Gold Deposit Scheme, 1988 or deposit certificates issued under the Gold Monetisation Scheme, 2011 notified by the Central Government.                                     | Nil.                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 23      | Interest on bonds issued by a local authority or by a State Financial Corporation.                                                                                                                                        | As specified by the Central Government, by notification.                                                                                                                                                                                                                                                                                                                                                                                                       |
| 24      | Any amount arising from the transfer of a capital asset, being a result of the Gold Scheme, 1988 referred to in Schedule I to the Union Budget of India (Transfer of Undertaking and Repeal Act, 2002) or of 2002.        | The transfer of such asset takes place on or after the 1st April, 2003.                                                                                                                                                                                                                                                                                                                                                                                        |





| Sl. No. | Provision made in the Withdrawal Agreement                                                                                                                                     | Eligible persons                                                                               | Comments                                                                                                                                                                                                                                                                                                                                                               |
|---------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | 1.1                                                                                                                                                                            | 1.1                                                                                            | 1.1                                                                                                                                                                                                                                                                                                                                                                    |
|         |                                                                                                                                                                                |                                                                                                | <p>(1) the income of the family; or</p> <p>(2) the income of the subsisting leg to the family, in the case of any impermissible trust.</p>                                                                                                                                                                                                                             |
| 2       | Any person involved in a partner's conduct has share in the total income of the firm.                                                                                          | A person who is a partner or who has acquired the ownership in such.                           | The same involved in share in profit as to per the profit sharing ratio provided in the partnership deed.                                                                                                                                                                                                                                                              |
| 3       | Any amount received as remuneration from the Central Banking system or a State Government or is paid and payable by way of compensation for loss of or suspension from office. | Any individual or his legal heirs.                                                             | Non-discrimination of this amount may allowed under the Act on account of any loss or damage caused by such disaster to such individual or his legal heirs.                                                                                                                                                                                                            |
| 4       | Any person who has the National Pension Scheme. Such member has provision scheme established by section 104.                                                                   | <p>(1) his employee or</p> <p>(2) an employer, having the provision in favour of a member.</p> | <p>(a) Such provision is not partial withdrawal made out of the account of the person on the case may be after the term and condition specified under the Pension Fund Regulatory and Development Authority Act, 2013 (23 of 2013) and the regulations made thereunder; and</p> <p>(b) provision shall not exceed 25% of the amount of available fund made by him.</p> |
| 5       | Eligible persons removed.                                                                                                                                                      | Any person by reason of his membership of Parliament or of any                                 | 10                                                                                                                                                                                                                                                                                                                                                                     |

| 33.<br>Area | Whether and to the<br>what extent<br>covered                   | Whether relevant                                                                                                                                                                                                                                        | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|-------------|----------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 34.         | 35.                                                            | 36.                                                                                                                                                                                                                                                     | 37.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|             |                                                                | State Legislature or of<br>any Commission Body<br>etc.                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 35.         | Any allegation re-<br>ferred.                                  | Any person by virtue<br>of his membership of<br>Parliament under the<br>Members of Parlia-<br>ment (Control of<br>Expenditure) Rules, 1958<br>made under the Salary<br>Advances and Exp-<br>ense of Members of<br>Parliament Act, 1958<br>(19 of 1958). | No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 36.         | Any disciplinary<br>action taken.                              | Any person by virtue<br>of his membership of<br>any State Legislature<br>under any State Act in<br>relation to the members                                                                                                                              | No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 37.         | The nature of any<br>alleged transgression or<br>misbehaviour. | Any individual.                                                                                                                                                                                                                                         | <p>37.1 Such case is covered<br/>by no other law made<br/>thereunder.</p> <p>37.2 It was his responsibility<br/>as a free individual<br/>and his freedom to<br/>communicate with<br/>his constituency<br/>was under no such<br/>provisions in India.</p> <p>37.3 It was his responsibility<br/>as a Member of<br/>parliament to be<br/>accountable to<br/>his constituency<br/>in any place in<br/>India after re-<br/>sponsible duties<br/>excepted or after<br/>the termination<br/>of his activity.</p> |



| 18.<br>Plus | Whether or not the individual is a special person                                                          | Eligible persons                                                                                           | Offences                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|-------------|------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 19.         | 20.                                                                                                        | 21.                                                                                                        | 22.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|             |                                                                                                            |                                                                                                            | <p>person or not. The individual is called to appear if he is not a person who is paid for his services.</p> <p>(b) such allowance is to each extent as may be provided having regard to the nature of the work which is required and other relevant considerations.</p> <p>(c) the individual is not to be employed by the person in any way.</p> <p>(d) the person has not been employed previously but is employed as a person who is called to appear if he is not a person who is paid for his services.</p> |
| 23.         | Any person who is not a person who is called to appear if he is not a person who is paid for his services. | Any person who is not a person who is called to appear if he is not a person who is paid for his services. | <p>(a) Such allowance is to be made to each extent as may be provided having regard to the nature of the work which is required and other relevant considerations.</p> <p>(b) such allowance is to be made to each extent as may be provided having regard to the nature of the work which is required and other relevant considerations.</p>                                                                                                                                                                     |



| 24<br>Ann | Reserve credit in the consolidated financial statement                                                        | Eligible reserves                                                                                              | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|-----------|---------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 25        | 26                                                                                                            | 27                                                                                                             | 28                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|           |                                                                                                               | issued as the Central Government may, by notification, specify in this behalf.                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 29        | Reserve premium received                                                                                      | Any reserves of the liability of an individual referred against such liability of                              | Nil                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 30        | Reserve premium received                                                                                      | Where an employer or contributor, being a member of the board having banking pass, making forward of the Union | This clause of such direction has commenced in the matter of specialisation and other provisions equal subject to such conditions, as may be prescribed.                                                                                                                                                                                                                                                                                                                                                                                                 |
| 31        | Any reserve credit shall be the total for reserve credit within 100/100                                       | In case of an employer and referred to by that in a section                                                    | Provision of such reserve credit the total income as to the reserve credit shall not exceed 100/100 in respect of such reserve credit which shall be as follows:                                                                                                                                                                                                                                                                                                                                                                                         |
| 32        | Any reserve charge, other reserve like fund "Capital gain" as to the total of the income of agricultural land | An individual in a 100 in the consolidated liability                                                           | <p>(a) Such reserve credit of the year being referred to in section 25(2)(a);</p> <p>(b) such fund, during the period of 100 years immediately preceding the date of transfer, was being used for agricultural purposes for such 100 years as directed by the Government or as provided in a contract of 100;</p> <p>(c) such reserve credit was of agricultural, agricultural, or other nature, and was used as a transfer of the same, and was used for such as determined or approved by the Central Government or the Reserve Bank of India; and</p> |

| 24.<br>(a) | Structure with its<br>associated financial<br>statements                                                                                                                                                     | Eligible persons                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           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                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | (a) modifications have not been<br>from the perspective<br>from an incorporation<br>from such transfer or<br>restructuring transaction<br>before or on the 30th April<br>2008. |
| 19         | Any financial vehicle<br>structure as follows:-<br><br>(a) From any<br>transfer in the<br>group of India<br>registered in<br>section 101<br><br>(b) By way of the<br>transfer of<br>and the transfer<br>and. | A member of a Hindu<br>Joint Family:-<br><br>(a) modifications to<br>the Hindu Joint<br>Family, and<br><br>(b) resulting in the<br>are specified in<br>PART II of the<br>Table appended<br>to paragraph<br>10 of the Sixth<br>Schedule to the<br>Constitution<br>as for the Union<br>of New South<br>Wales, New<br>Zealand, Hong<br>Kong, Singapore,<br>England and<br>Wales or in the<br>area covered by<br>modifications No.<br>1, 2, 3, 4, 5, 6, 7, 8,<br>9, 10, 11, 12, 13, 14, 15,<br>16, 17, 18, 19, 20, 21,<br>22, 23, 24, 25, 26, 27,<br>28, 29, 30, 31, 32, 33,<br>34, 35, 36, 37, 38, 39,<br>40, 41, 42, 43, 44, 45,<br>46, 47, 48, 49, 50, 51,<br>52, 53, 54, 55, 56, 57,<br>58, 59, 60, 61, 62, 63,<br>64, 65, 66, 67, 68, 69,<br>70, 71, 72, 73, 74, 75,<br>76, 77, 78, 79, 80, 81,<br>82, 83, 84, 85, 86, 87,<br>88, 89, 90, 91, 92, 93,<br>94, 95, 96, 97, 98, 99,<br>100, 101, 102, 103, 104,<br>105, 106, 107, 108, 109,<br>110, 111, 112, 113, 114,<br>115, 116, 117, 118, 119,<br>120, 121, 122, 123, 124,<br>125, 126, 127, 128, 129,<br>130, 131, 132, 133, 134,<br>135, 136, 137, 138, 139,<br>140, 141, 142, 143, 144,<br>145, 146, 147, 148, 149,<br>150, 151, 152, 153, 154,<br>155, 156, 157, 158, 159,<br>160, 161, 162, 163, 164,<br>165, 166, 167, 168, 169,<br>170, 171, 172, 173, 174,<br>175, 176, 177, 178, 179,<br>180, 181, 182, 183, 184,<br>185, 186, 187, 188, 189,<br>190, 191, 192, 193, 194,<br>195, 196, 197, 198, 199,<br>200, 201, 202, 203, 204,<br>205, 206, 207, 208, 209,<br>210, 211, 212, 213, 214,<br>215, 216, 217, 218, 219,<br>220, 221, 222, 223, 224,<br>225, 226, 227, 228, 229,<br>230, 231, 232, 233, 234,<br>235, 236, 237, 238, 239,<br>240, 241, 242, 243, 244,<br>245, 246, 247, 248, 249,<br>250, 251, 252, 253, 254,<br>255, 256, 257, 258, 259,<br>260, 261, 262, 263, 264,<br>265, 266, 267, 268, 269,<br>270, 271, 272, 273, 274,<br>275, 276, 277, 278, 279,<br>280, 281, 282, 283, 284,<br>285, 286, 287, 288, 289,<br>290, 291, 292, 293, 294,<br>295, 296, 297, 298, 299,<br>300, 301, 302, 303, 304,<br>305, 306, 307, 308, 309,<br>310, 311, 312, 313, 314,<br>315, 316, 317, 318, 319,<br>320, 321, 322, 323, 324,<br>325, 326, 327, 328, 329,<br>330, 331, 332, 333, 334,<br>335, 336, 337, 338, 339,<br>340, 341, 342, 343, 344,<br>345, 346, 347, 348, 349,<br>350, 351, 352, 353, 354,<br>355, 356, 357, 358, 359,<br>360, 361, 362, 363, 364,<br>365, 366, 367, 368, 369,<br>370, 371, 372, 373, 374,<br>375, 376, 377, 378, 379,<br>380, 381, 382, 383, 384,<br>385, 386, 387, 388, 389,<br>390, 391, 392, 393, 394,<br>395, 396, 397, 398, 399,<br>400, 401, 402, 403, 404,<br>405, 406, 407, 408, 409,<br>410, 411, 412, 413, 414,<br>415, 416, 417, 418, 419,<br>420, 421, 422, 423, 424,<br>425, 426, 427, 428, 429,<br>430, 431, 432, 433, 434,<br>435, 436, 437, 438, 439,<br>440, 441, 442, 443, 444,<br>445, 446, 447, 448, 449,<br>450, 451, 452, 453, 454,<br>455, 456, 457, 458, 459,<br>460, 461, 462, 463, 464,<br>465, 466, 467, 468, 469,<br>470, 471, 472, 473, 474,<br>475, 476, 477, 478, 479,<br>480, 481, 482, 483, 484,<br>485, 486, 487, 488, 489,<br>490, 491, 492, 493, 494,<br>495, 496, 497, 498, 499,<br>500, 501, 502, 503, 504,<br>505, 506, 507, 508, 509,<br>510, 511, 512, 513, 514,<br>515, 516, 517, 518, 519,<br>520, 521, 522, 523, 524,<br>525, 526, 527, 528, 529,<br>530, 531, 532, 533, 534,<br>535, 536, 537, 538, 539,<br>540, 541, 542, 543, 544,<br>545, 546, 547, 548, 549,<br>550, 551, 552, 553, 554,<br>555, 556, 557, 558, 559,<br>560, 561, 562, 563, 564,<br>565, 566, 567, 568, 569,<br>570, 571, 572, 573, 574,<br>575, 576, 577, 578, 579,<br>580, 581, 582, 583, 584,<br>585, 586, 587, 588, 589,<br>590, 591, 592, 593, 594,<br>595, 596, 597, 598, 599,<br>600, 601, 602, 603, 604,<br>605, 606, 607, 608, 609,<br>610, 611, 612, 613, 614,<br>615, 616, 617, 618, 619,<br>620, 621, 622, 623, 624,<br>625, 626, 627, 628, 629,<br>630, 631, 632, 633, 634,<br>635, 636, 637, 638, 639,<br>640, 641, 642, 643, 644,<br>645, 646, 647, 648, 649,<br>650, 651, 652, 653, 654,<br>655, 656, 657, 658, 659,<br>660, 661, 662, 663, 664,<br>665, 666, 667, 668, 669,<br>670, 671, 672, 673, 674,<br>675, 676, 677, 678, 679,<br>680, 681, 682, 683, 684,<br>685, 686, 687, 688, 689,<br>690, 691, 692, 693, 694,<br>695, 696, 697, 698, 699,<br>700, 701, 702, 703, 704,<br>705, 706, 707, 708, 709,<br>710, 711, 712, 713, 714,<br>715, 716, 717, 718, 719,<br>720, 721, 722, 723, 724,<br>725, 726, 727, 728, 729,<br>730, 731, 732, 733, 734,<br>735, 736, 737, 738, 739,<br>740, 741, 742, 743, 744,<br>745, 746, 747, 748, 749,<br>750, 751, 752, 753, 754,<br>755, 756, 757, 758, 759,<br>760, 761, 762, 763, 764,<br>765, 766, 767, 768, 769,<br>770, 771, 772, 773, 774,<br>775, 776, 777, 778, 779,<br>780, 781, 782, 783, 784,<br>785, 786, 787, 788, 789,<br>790, 791, 792, 793, 794,<br>795, 796, 797, 798, 799,<br>800, 801, 802, 803, 804,<br>805, 806, 807, 808, 809,<br>810, 811, 812, 813, 814,<br>815, 816, 817, 818, 819,<br>820, 821, 822, 823, 824,<br>825, 826, 827, 828, 829,<br>830, 831, 832, 833, 834,<br>835, 836, 837, 838, 839,<br>840, 841, 842, 843, 844,<br>845, 846, 847, 848, 849,<br>850, 851, 852, 853, 854,<br>855, 856, 857, 858, 859,<br>860, 861, 862, 863, 864,<br>865, 866, 867, 868, 869,<br>870, 871, 872, 873, 874,<br>875, 876, 877, 878, 879,<br>880, 881, 882, 883, 884,<br>885, 886, 887, 888, 889,<br>890, 891, 892, 893, 894,<br>895, 896, 897, 898, 899,<br>900, 901, 902, 903, 904,<br>905, 906, 907, 908, 909,<br>910, 911, 912, 913, 914,<br>915, 916, 917, 918, 919,<br>920, 921, 922, 923, 924,<br>925, 926, 927, 928, 929,<br>930, 931, 932, 933, 934,<br>935, 936, 937, 938, 939,<br>940, 941, 942, 943, 944,<br>945, 946, 947, 948, 949,<br>950, 951, 952, 953, 954,<br>955, 956, 957, 958, 959,<br>960, 961, 962, 963, 964,<br>965, 966, 967, 968, 969,<br>970, 971, 972, 973, 974,<br>975, 976, 977, 978, 979,<br>980, 981, 982, 983, 984,<br>985, 986, 987, 988, 989,<br>990, 991, 992, 993, 994,<br>995, 996, 997, 998, 999,<br>1000, 1001, 1002, 1003, 1004,<br>1005, 1006, 1007, 1008, 1009,<br>1010, 1011, 1012, 1013, 1014,<br>1015, 1016, 1017, 1018, 1019,<br>1020, 1021, 1022, 1023, 1024,<br>1025, 1026, 1027, 1028, 1029,<br>1030, 1031, 1032, 1033, 1034,<br>1035, 1036, 1037, 1038, 1039,<br>1040, 1041, 1042, 1043, 1044,<br>1045, 1046, 1047, 1048, 1049,<br>1050, 1051, 1052, 1053, 1054,<br>1055, 1056, 1057, 1058, 1059,<br>1060, 1061, 1062, 1063, 1064,<br>1065, 1066, 1067, 1068, 1069,<br>1070, 1071, 1072, 1073, 1074,<br>1075, 1076, 1077, 1078, 1079,<br>1080, 1081, 1082, 1083, 1084,<br>1085, 1086, 1087, 1088, 1089,<br>1090, 1091, 1092, 1093, 1094,<br>1095, 1096, 1097, 1098, 1099,<br>1100, 1101, 1102, 1103, 1104,<br>1105, 1106, 1107, 1108, 1109,<br>1110, 1111, 1112, 1113, 1114,<br>1115, 1116, 1117, 1118, 1119,<br>1120, 1121, 1122, 1123, 1124,<br>1125, 1126, 1127, 1128, 1129,<br>1130, 1131, 1132, 1133, 1134,<br>1135, 1136, 1137, 1138, 1139,<br>1140, 1141, 1142, 1143, 1144,<br>1145, 1146, 1147, 1148, 1149,<br>1150, 1151, 1152, 1153, 1154,<br>1155, 1156, 1157, 1158, 1159,<br>1160, 1161, 1162, 1163, 1164,<br>1165, 1166, 1167, 1168, 1169,<br>1170, 1171, 1172, 1173, 1174,<br>1175, 1176, 1177, 1178, 1179,<br>1180, 1181, 1182, 1183, 1184,<br>1185, 1186, 1187, 1188, 1189,<br>1190, 1191, 1192, 1193, 1194,<br>1195, 1196, 1197, 1198, 1199,<br>1200, 1201, 1202, 1203, 1204,<br>1205, 1206, 1207, 1208, 1209,<br>1210, 1211, 1212, 1213, 1214,<br>1215, 1216, 1217, 1218, 1219,<br>1220, 1221, 1222, 1223, 1224,<br>1225, 1226, 1227, 1228, 1229,<br>1230, 1231, 1232, 1233, 1234,<br>1235, 1236, 1237, 1238, 1239,<br>1240, 1241, 1242, 1243, 1244,<br>1245, 1246, 1247, 1248, 1249,<br>1250, 1251, 1252, 1253, 1254,<br>1255, 1256, 1257, 1258, 1259,<br>1260, 1261, 1262, 1263, 1264,<br>1265, 1266, 1267, 1268, 1269,<br>1270, 1271, 1272, 1273, 1274,<br>1275, 1276, 1277, 1278, 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1579,<br>1580, 1581, 1582, 1583, 1584,<br>1585, 1586, 1587, 1588, 1589,<br>1590, 1591, 1592, 1593, 1594,<br>1595, 1596, 1597, 1598, 1599,<br>1600, 1601, 1602, 1603, 1604,<br>1605, 1606, 1607, 1608, 1609,<br>1610, 1611, 1612, 1613, 1614,<br>1615, 1616, 1617, 1618, 1619,<br>1620, 1621, 1622, 1623, 1624,<br>1625, 1626, 1627, 1628, 1629,<br>1630, 1631, 1632, 1633, 1634,<br>1635, 1636, 1637, 1638, 1639,<br>1640, 1641, 1642, 1643, 1644,<br>1645, 1646, 1647, 1648, 1649,<br>1650, 1651, 1652, 1653, 1654,<br>1655, 1656, 1657, 1658, 1659,<br>1660, 1661, 1662, 1663, 1664,<br>1665, 1666, 1667, 1668, 1669,<br>1670, 1671, 1672, 1673, 1674,<br>1675, 1676, 1677, 1678, 1679,<br>1680, 1681, 1682, 1683, 1684,<br>1685, 1686, 1687, 1688, 1689,<br>1690, 1691, 1692, 1693, 1694,<br>1695, 1696, 1697, 1698, 1699,<br>1700, 1701, 1702, 1703, 1704,<br>1705, 1706, 1707, 1708, 1709,<br>1710, 1711, 1712, 1713, 1714,<br>1715, 1716, 1717, 1718, 1719,<br>1720, 1721, 1722, 1723, 1724,<br>1725, 1726, 1727, 1728, 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1879,<br>1880, 1881, 1882, 1883, 1884,<br>1885, 1886, 1887, 1888, 1889,<br>1890, 1891, 1892, 1893, 1894,<br>1895, 1896, 1897, 1898, 1899,<br>1900, 1901, 1902, 1903, 1904,<br>1905, 1906, 1907, 1908, 1909,<br>1910, 1911, 1912, 1913, 1914,<br>1915, 1916, 1917, 1918, 1919,<br>1920, 1921, 1922, 1923, 1924,<br>1925, 1926, 1927, 1928, 1929,<br>1930, 1931, 1932, 1933, 1934,<br>1935, 1936, 1937, 1938, 1939,<br>1940, 1941, 1942, 1943, 1944,<br>1945, 1946, 1947, 1948, 1949,<br>1950, 1951, 1952, 1953, 1954,<br>1955, 1956, 1957, 1958, 1959,<br>1960, 1961, 1962, 1963, 1964,<br>1965, 1966, 1967, 1968, 1969,<br>1970, 1971, 1972, 1973, 1974,<br>1975, 1976, 1977, 1978, 1979,<br>1980, 1981, 1982, 1983, 1984,<br>1985, 1986, 1987, 1988, 1989,<br>1990, 1991, 1992, 1993, 1994,<br>1995, 1996, 1997, 1998, 1999,<br>2000, 2001, 2002, 2003, 2004,<br>2005, 2006, 2007, 2008, 2009,<br>2010, 2011, 2012, 2013, 2014,<br>2015, 2016, 2017, 2018, 2019,<br>2020, 2021, 2022, 2023, 2024,<br>2025, 2026, 2027, 2028, 2029,<br>2030, 2031, 2032, 2033, 2034,<br>2035, 2036, 2037, 2038, 2039,<br>2040, 2041, 2042, 2043, 2044,<br>2045, 2046, 2047, 2048, 2049,<br>2050, 2051, 2052, 2053, 2054,<br>2055, 2056, 2057, 2058, 2059,<br>2060, 2061, 2062, 2063, 2064,<br>2065, 2066, 2067, 2068, 2069,<br>2070, 2071, 2072, 2073, 2074,<br>2075, 2076, 2077, 2078, 2079,<br>2080, 2081, 2082, 2083, 2084,<br>2085, 2086, 2087, 2088, 2089,<br>2090, 2091, 2092, 2093, 2094,<br>2095, 2096, 2097, 2098, 2099,<br>2100, 2101, 2102, 2103, 2104,<br>2105, 2106, 2107, 2108, 2109,<br>2110, 2111, 2112, 2113, 2114,<br>2115, 2116, 2117, 2118, 2119,<br>2120, 212 |                                                                                                                                                                                |



| 22.<br>File | Number and in the<br>Workbook Approval<br>(number)                                                                                                                | Eligible persons                                                                              | Comments                                                                                                                                                                                                                                                                                                                                                                                                                         |
|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 22          | 22                                                                                                                                                                | 22                                                                                            | 22                                                                                                                                                                                                                                                                                                                                                                                                                               |
|             |                                                                                                                                                                   |                                                                                               | <p>from the Accounting Office may allow a certificate from the concerned Board, as to the amount of such liability paid to the person during the term</p>                                                                                                                                                                                                                                                                        |
| 22          | <p>The number which is chargeable under the head "Income from business property", "Capital gains" or "Income from other sources" or from a trade or business.</p> | <p>Any board authority</p>                                                                    | <p>Income from trade or business is chargeable for taxation from total income if such income accrues or arises from the supply of:-</p> <ul style="list-style-type: none"> <li>(a) a commodity or service (not being supply or electricity) within the term "predefined work"</li> <li>(b) major or plant or facility within or outside the term "predefined work"</li> </ul>                                                    |
| 22          | <p>Any instance of a tax liability assessment</p>                                                                                                                 | <p>A research institution for the time being approved for the purpose of section 22(2)(a)</p> | <ul style="list-style-type: none"> <li>(a) Applies the income is accumulated if for application, study and research for the objects for which it is established</li> <li>(b) Income in funds or assets in the form or mode specified in section 22</li> <li>(c) subject to such rules as may be prescribed</li> <li>(d) expenditure for such object of approval provided shall be in such manner as may be prescribed</li> </ul> |

| Sl. No. | Activities not to be conducted in rural areas                                                                                                                                                          | Eligible persons                                                                                                                                                                                                                                                                                 | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|---------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A.      | B.                                                                                                                                                                                                     | C.                                                                                                                                                                                                                                                                                               | D.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 20.     | Any person who has been charged with under the head "Laundering house property" or any person involved in rendering any services or income by way of interest or dividend derived from the Government. | An association or institution established in India having as its object the mutual cooperation, regulation or improvement of the production of handicrafts, minor hand engineering or agriculture or such other production as the Central Government may by notification specify in this behalf. | <p>(a) The association or institution applying for income or service tax relief applications, solely for the purposes specified in sub-section (1).</p> <p>(b) the association or institution is for the time being approved by the Central Government by general or special order; and</p> <p>(c) the procedure for the demand of approval provided shall be in such manner as may be provided.</p>                                                                                                                                                                         |
| 21.     | Any business which results in the business of production, sale, or marketing of goods or products of village industries.                                                                               | An institution constituted up a person who holds land registered under the District Registration Act, 1946 (23 of 1946) or under any other law corresponding to that Act in force in any part of India.                                                                                          | <p>(a) Such institutions must solely for the development of village industries or handicrafts and for the purposes of profit;</p> <p>(b) such institutions apply for income or service tax relief applications, solely for the development of village industries or handicrafts;</p> <p>(c) such institutions are approved for such purposes by the District and Village Industries Commissioner for a period not exceeding three years or such other term; and</p> <p>(d) the procedure for the demand of approval or grant shall be in such manner as may be provided.</p> |

| 22<br>23 | Structure and its<br>evolutionary<br>process                                                                      | Eligible persons                                                                                       | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|----------|-------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A        | B                                                                                                                 | C                                                                                                      | D                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 20       | An institution for the<br>study of political<br>science.                                                          | A corporation, trust,<br>firm or association.                                                          | 10                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 21       | Any person, by<br>way of institution,<br>trust, partnership<br>or company, and the<br>members thereof.            | Any person, by way<br>of institution, trust,<br>partnership or<br>company, and the<br>members thereof. | <p>(a) Shall be controlled<br/>by the Central Government;<br/>and</p> <p>(b) shall not, at any time,<br/>standing in the credit<br/>of the Fund, and not<br/>charged in respect to<br/>during any time, be<br/>charged, either wholly<br/>or in part, with a<br/>commodity stock or<br/>change, the whole of<br/>the amount so charged<br/>shall be deemed to be<br/>the interest of the<br/>person in which such<br/>amount is so charged<br/>and shall accordingly<br/>be be chargeable to<br/>himself.</p>   |
| 22       | Any person, by way<br>of institution or<br>company, trust, partnership<br>or company, and the<br>members thereof. | Any person, by way<br>of institution, trust,<br>partnership or<br>company, and the<br>members thereof. | <p>(a) Shall be controlled<br/>by the Central Government;<br/>and</p> <p>(b) shall not, at any time,<br/>standing in the credit<br/>of the said Fund, and<br/>not charged in<br/>respect to during any<br/>time, be charged,<br/>either wholly or in<br/>part, with a commodity<br/>stock or change, the whole of<br/>the amount so charged<br/>shall be deemed to be<br/>the interest of the<br/>person in which such<br/>amount is so charged<br/>and shall accordingly<br/>be chargeable to<br/>himself.</p> |

| 24<br>(a) | Structure not to be<br>excluded as special<br>purpose                                                                                                                                                                                                                                                                               | Eligible structure                                                                                     | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 25        | 26                                                                                                                                                                                                                                                                                                                                  | 27                                                                                                     | 28                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 19        | Any amount for any<br>of contributions re-<br>ceived from a third<br>party.                                                                                                                                                                                                                                                         | Any Investor Foreign<br>Loan Fund set up in<br>accordance with the<br>regulations of a<br>depository.  | (a) Such fund is regulated<br>by the Central Government<br>and<br>(b) where any amount<br>standing to the credit<br>of the Fund and not<br>charged to income tax<br>during any tax year is<br>shared, where wholly<br>or in part with third<br>party, the whole of the<br>amount received shall<br>be deemed to be the<br>income of the tax year<br>in which such amount<br>is so shared and shall<br>accordingly be charge-<br>able to income tax.                 |
| 20        | (a) Any expense<br>in case of non-<br>collection re-<br>ceived from<br>specified per-<br>sons;<br>(b) and amount for<br>cost of postal<br>tax imposed by the stamp<br>and clearing<br>company and<br>and "credited<br>to the Central<br>Government<br>specie Fund"<br>(c) any amount<br>from interest<br>received from<br>the Fund. | Any Clear Settlement<br>Structure Fund, set<br>up by a recognised<br>clearing corporation.             | (a) Such fund is regulated<br>by the Central Govern-<br>ment and<br>(b) where any amount<br>standing to the credit<br>of the Fund and not<br>charged to income tax<br>during any tax year is<br>shared, where wholly<br>or in part with the<br>specified persons, the<br>whole of the amount so<br>shared shall be deemed<br>to be the income of the<br>tax year in which such<br>amount is so shared<br>and shall, accordingly,<br>be chargeable to<br>income tax. |
| 21        | Any amount charge-<br>able under the heads<br>"Income from immov-<br>able property" and "In-<br>come from other<br>sources"                                                                                                                                                                                                         | (a) A registered in-<br>surer within the<br>meaning of the<br>Income Tax Act, 1922, in<br>1916, formed | (a)                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |









referred to as the "Register of Indian Holdings", substantially before the 20th April 1975;

(iii) notwithstanding what might be indicated in the Register of Indian Holdings, Section 4 of the Government of India Act, 1955 (No. 16 of 1955), dated the 1st August 1955 and in force of amendments dated the 20th April, 1975;

(iv) any other individual whose name does not appear in the Register of Indian Holdings, 1975, but it is established beyond doubt that the father or husband or paternal grandfather or brother from the same father of such individual has been recorded in that register;

(v) any other individual whose name does not appear in the Register of Indian Holdings but it is established that such individual was deceased on 15th August or before the 20th April 1975; or

(vi) any other individual who was deceased before 15th August or is before the 20th April 1975, but it is established beyond doubt that the father or husband or paternal grandfather or brother from the same father of such individual was deceased on 15th August or before the 20th April 1975.

Item 1.—For the purposes of Cl. 21, the expression "Scheduled Caste" means—

(a) in relation to tea, the Tea Branch listed under the Tea Branch established under section 4 of the Tea Act, 1946 (29 of 1946);

(b) in relation to coffee, the Rubber, Rubber-cultivation and rubber section 4 of the Rubber Act, 1947 (34 of 1947);

(c) in relation to rubber, the Rubber Board established under section 4 of the Rubber Act, 1947 (34 of 1947);

(d) in relation to cardamom, the Spice Board established under section 5 of the Spice Board Act, 1970 (10 of 1970);

(e) in relation to any other commodity, any Board or other authority established under any law for the time being in force which the Central Government may, by notification, specify in this behalf.

Item 2.—For the purposes of Cl. 21, the expression "local authority" means—

(a) Municipality as referred to in article 243P of the Constitution; or

(b) Municipality as referred to in article 243Q of the Constitution; or

(c) Municipal Committee and District Board;

being referred to, in relation to, by the Government with the consent or sanction of a Municipality or local Board; or

(d) District Board established under section 3 of the District Board Act, 1906 (16 of 1906).

Item 3.—For the purposes of Cl. 21, —

(a) "Khasi and Jaintia Districts" means the Khasi and Jaintia Districts constituted under the Khasi and Jaintia Districts Commencement Act, 1944 (61 of 1944); and

(b) "Mizoram" and "Village Industries" shall have the same meanings as respectively assigned to those words; but

Item 4.—For the purposes of Cl. 21, —

(a) "unincorporated" shall have the same meaning as assigned to it;—

(b) in regulation 11(1) of the Districts and Revenue Board of India (Provisions and Interpretation) Act, 1962 (No. 12 of 1962).

1999 made under the Securities and Exchange Board of India Act, 1992 (11 of 1992) and the Securities Contracts (Regulation) Act, 1956 (44 of 1956) as

(ii) in section 3(10) of the Securities and Exchange Board of India Act, 1992 (11 of 1992) as

(iii) under the provisions on contribution of standard assets made by the Reserve Bank of India;

(iv) "securities" shall have the meaning assigned to it in section 2(30) of the

Act; for the purposes of M. No. 34...

"Company" shall mean a registered company as defined in section 2(2) of the Companies Act, 1956 (1 of 1956).

(v) For the purposes of M. No. 34...

(i) "depository" shall have the same meaning as assigned to it in section 2(35) of the Depositories Act, 1996 (44 of 1996);

(ii) "regulations" shall mean the regulations made under the Securities and Exchange Board of India Act, 1992 (11 of 1992) and the Depositories Act, 1996 (44 of 1996);

(vi) For the purposes of M. No. 34...

(i) "registered clearing corporation" shall have the same meaning as assigned to it in

(ii) regulation 3(1) of the Securities Contracts (Regulation) Act, 1956 and the Securities and Exchange Board of India Act, 1992 (11 of 1992) and the Securities Contracts (Regulation) Act, 1956 (44 of 1956) as

(iii) regulation 3(1) of the International Financial Services Centre Authority (Shri Sri International Financial Centre) Regulations, 2001 made under the International Financial Services Centre Authority Act, 2000 (30 of 2000)

(v) "regulations" mean...

(i) the Securities Contracts (Regulation) Act, 1956 and the Securities and Exchange Board of India Act, 1992 (11 of 1992) as

(ii) the International Financial Services Centre Authority (Shri Sri International Financial Centre) Regulations, 2001 made under the International Financial Services Centre Authority Act, 2000 (30 of 2000)

(vi) "approved assets" mean...

(i) any registered clearing corporation which contributes and maintains the Clearing Settlement Guarantee Fund;

(ii) any approved stock exchange being a stock exchange which contributes and maintains the Clearing Settlement Guarantee Fund; and

(iii) any clearing member contributing to the Clearing Settlement Guarantee Fund.

(vii) For the purposes of M. No. 34...

- (iii) the provisions as mentioned against the said 'total' number shall apply to or to what such item as may be included by the Council (the members of the body) and
- (iv) providing such information, the state's statutory provisions (that is, official the relevant and related character of a detailed officer of the Indian central finance and the college from mentioned).

NOTE 15. For the purposes of SE. 10. 1.1.1, "original subject matter" means:-

- (a) the land or building or both owned by the owner as in the first stage. (It is not included has been transferred under the subject) or
- (b) all land or building or both owned under the subject as the owner in respect of land or building or both referred to in clause (a) or
- (c) the reconstructed plot or land, as the case may be, owned by the owner in the of land or building or both referred to in clause (a) or (b) in accordance with the details of such plot or land, as the case may be, as included in the original subject from year from the start of the present year in which the provision of such plot or land was included in the first.

## ARTICLE 15

[See section 11]

### INCOME NOT TO BE INCLUDED IN TOTAL INCOME OF ELIGIBLE ASSESSOR. RESERVE, PERSONAL COMPANION AND OTHER SUCH PERSONS

In computing the total income of a tax payer of any eligible person mentioned in column I of the Table below, the income mentioned in column II of the said Table shall not be included, subject to the conditions mentioned in column III of the said Table, and the expenditure said in column IV in II shall have the meaning respectively assigned to them in the Notes below the said Table:

TABLE

| Sl. No. | Income not to be included in total income | Eligible persons                                                                                                                                                                                                                                           | Conditions                                                                                                                                                                     |
|---------|-------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                         | C                                                                                                                                                                                                                                                          | D                                                                                                                                                                              |
| 1.      | Any income by way of interest             | <p>(i) A person being an individual, who is a resident and who resides in the United Kingdom.</p> <p>(ii) or the Foreign Exchange Management Act, 1947 (F.E.M.A. Act, 1947) or</p> <p>(iii) a person being an individual who has been protected in the</p> | As it relates to the income standing in the credit of such person in a Bank (not being a branch) Account in any bank in India or for the said Act and the relevant provisions. |

| Sl. No. | Description that has to be included in the contract                                                                                                           | Eligible persons                                                                                                                                                                                                                 | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | 2                                                                                                                                                             | 3                                                                                                                                                                                                                                | 4                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|         |                                                                                                                                                               | Reserve Bank of India to report to the said person.                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 2.      | Any international non-resident has visited the territory in the capacity of an official representative, as defined in sub-section (2) of the said act, India. | An official, by definition, is a member of the staff of an embassy, high commission, legation, consulate, trade representative or the local representation of a foreign State, or a member of the staff of any of these offices. | <p>(a) The person should not be a member of the staff of the government of a foreign State (not holding office, as such, in the territory, regularly or as a member of the staff, if any, of the government, resident for similar purposes in the country concerned or qualified for exemption in that country); and</p> <p>(b) The members of the staff are subjects of the country represented and are not engaged in any business or profession or employment in India otherwise than as members of the staff.</p> |
| 3.      | Any international non-resident as an employee or the services rendered by him during his stay in India.                                                       | A person who is an employee of a foreign enterprise, not being a citizen of India.                                                                                                                                               | <p>(a) The foreign enterprise is not engaged in any trade or business in India.</p> <p>(b) No stay in India should exceed in the aggregate a period of ninety days in each financial year; and</p> <p>(c) such representation is not liable to be deducted from the</p>                                                                                                                                                                                                                                               |

| 22.<br>Para | Description that is to<br>be included in India<br>Inventory                                                                                                                  | Eligible persons                                                                             | Exclusions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1           | 2                                                                                                                                                                            | 3                                                                                            | 4                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|             |                                                                                                                                                                              |                                                                                              | cases of the employee<br>changeable under this<br>Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 4           | Any person who is<br>under the Tamil<br>“Debarment”, residing in<br>this or in another<br>for another resident<br>in connection with<br>his employment in a<br>foreign ship. | Any individual being a<br>super resident, not being<br>a person of India.                    | The total stay of such an<br>individual in India does not<br>count in the aggregate a<br>period of twenty days in the<br>last year.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 5           | Any person who is<br>under an employment<br>of the Government of<br>a foreign State.                                                                                         | Any employee of the<br>Government of a for-<br>eign State, not being a<br>resident of India. | Such person is in-<br>cluded during his stay in<br>India in connection with<br>his work in any of the<br>following cases:—<br>(a) the Government; or<br>(b) any company or<br>establishment partly<br>or wholly owned or<br>held by the Central<br>Government or any<br>State Government or<br>Local Government, or<br>partly by the Cen-<br>tral Government and<br>partly by one or more<br>State Governments; or<br>(c) any company which<br>is a subsidiary of a<br>company referred to<br>in clause (b); or<br>(d) any corporation or<br>establishment owned<br>by the Central Govt. or State<br>Govt. or Provincial Govt.; or<br>(e) any body or person<br>under the sanction. |

| Sl. No. | Description of the Intellectual Property                                                                  | Eligible persons                                          | Conditions                                                                                                                                                                                                                                                                                 |
|---------|-----------------------------------------------------------------------------------------------------------|-----------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | A                                                                                                         | B                                                         | C                                                                                                                                                                                                                                                                                          |
|         |                                                                                                           |                                                           | Registration Act, 1999 (21 of 1999), or under any other law and wholly or owned by the Central Government or any State Government or Public Corporation or partly by the Central Government and partly by one or more State Governments.                                                   |
| 2       | Any invention relating to any of results of the technological activities                                  | Any foreign company                                       | <p>(i) Such company is controlled by the Central Government; and</p> <p>(ii) such company is involved in possession of an agreement entered into with the Central Government for providing services in or outside India in projects sponsored wholly or partly by Government of India.</p> |
| 3       | Any invention relating to any of results from or from the technical services rendered in or outside India | A non-resident, not being a company or a foreign company  | <p>(i) Such royalty is received from the National Technical Research Organisation;</p> <p>(ii) such royalty for technical services rendered by the National Technical Research Organisation.</p>                                                                                           |
| 4       | Invention relating to                                                                                     | Non-resident (or a person who is not ordinarily resident) | Such person is resident in India on a date not later than the 1st April, 2000 (or on the date of the Special Economic Zones Act, 2005 (34 of 2005))                                                                                                                                        |

| Sl. No. | Description that has to be included in the contract                                               | Eligible persons                     | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                              |
|---------|---------------------------------------------------------------------------------------------------|--------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                 | C                                    | D                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| II      | Income from taxes levied by industry owner (paid) or company                                      | Foreign company                      | <p>(a) Such income is received from a specific local company which operates in India or abroad.</p> <p>(b) such foreign company or said the specified company does not maintain of the local holding, subsidiary and</p> <p>(c) such income is received or derived or arises in India from a relevant year for preceding or in India from 1st April, 1920.</p>                                                                          |
| III     | Any income derived in India by way of interest, dividends or Capital gains from investments made. | The Foreigner (Non-resident) Company | Such investments made out of its funds under such scheme as the Central Government may by notification specify.                                                                                                                                                                                                                                                                                                                         |
| IV      | Any income received in India as Indian currency.                                                  | A foreign company                    | <p>(a) Such income is an amount or sale of goods or any other goods or rendering of services, or may be qualified by the Central Government in this behalf, or any person in India.</p> <p>(b) received such income includes by the foreign company to persons in an agreement or an arrangement entered into by the Central Government or approved by the Central Government.</p> <p>(c) Such foreign company and the agreement or</p> |

| Sl. No. | Description that has been included in the contract                                                                                                                                                                                                    | Eligible persons                                                                                             | Conditions                                                                                                                                                                                                                                                                                                                                       |
|---------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 10      | A                                                                                                                                                                                                                                                     | B                                                                                                            | C                                                                                                                                                                                                                                                                                                                                                |
|         |                                                                                                                                                                                                                                                       |                                                                                                              | <p>an agreement) is notified by the Central Government, having regard to the national interest; and</p> <p>(ii) such an agreement is made, subject to any stipulations which, in the then prevailing conditions, are such as to ensure</p>                                                                                                       |
| 11.     | Any business involving acquisition or disposal of a facility in India made in contravention to any provision contained in India.                                                                                                                      | A foreign company                                                                                            | <p>(a) Such an agreement shall apply to the foreign company in particular from agreement or any assignment of such rights by the Central Government or approved by the Central Government; and</p> <p>(ii) such an agreement and the agreement or arrangement is notified by the Central Government, having regard to the national interest.</p> |
| 12.     | Any business involving acquisition or disposal of such an interest which is made in, or from, India after the expiry of the agreement or arrangement entered into pursuant to article 12 or not in compliance with the said agreement or arrangement. | A foreign company                                                                                            | Such an agreement shall be in force for (a) the period specified in the said agreement or arrangement, subject to such conditions as may be specified by the Central Government in this behalf.                                                                                                                                                  |
| 13.     | Any business involving acquisition or disposal of property, capital goods, equipment or trading in a foreign country.                                                                                                                                 | A foreign company who is providing capital goods, equipment or trading in the product manufactured in India. | (a) The sale of such capital goods, equipment or trading in property in the foreign country.                                                                                                                                                                                                                                                     |



| Sl. No. | Description that has been included in the Bill                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     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| 16      | B                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            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                                                                                                                                                                                                                                                                                                                                                                                                                           |
|         | or otherwise, for securing or using in India the right of processing of non-schedule currency notes or specified value currency.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                     | <p>Central Government in this behalf;</p> <p>(b) subsidiary company, that that may represent any one of the physical branches, or any extension of the specified value currency;</p> <p>(c) all such foreign companies, or others licensed in India, are made through a foreign entity being an Indian company;</p> <p>(d) such foreign companies shall maintain such proper records in such books and accounts as may be prescribed; and</p> <p>(e) such accounts shall be available up to last year ending on the 31st March, 2007.]</p> |
| 17      | Any account relating to the year 1980, 1981, 1982, 1983, 1984, 1985, 1986, 1987, 1988, 1989, 1990, 1991, 1992, 1993, 1994, 1995, 1996, 1997, 1998, 1999, 2000, 2001, 2002, 2003, 2004, 2005, 2006, 2007, 2008, 2009, 2010, 2011, 2012, 2013, 2014, 2015, 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025, 2026, 2027, 2028, 2029, 2030, 2031, 2032, 2033, 2034, 2035, 2036, 2037, 2038, 2039, 2040, 2041, 2042, 2043, 2044, 2045, 2046, 2047, 2048, 2049, 2050, 2051, 2052, 2053, 2054, 2055, 2056, 2057, 2058, 2059, 2060, 2061, 2062, 2063, 2064, 2065, 2066, 2067, 2068, 2069, 2070, 2071, 2072, 2073, 2074, 2075, 2076, 2077, 2078, 2079, 2080, 2081, 2082, 2083, 2084, 2085, 2086, 2087, 2088, 2089, 2090, 2091, 2092, 2093, 2094, 2095, 2096, 2097, 2098, 2099, 2100, 2101, 2102, 2103, 2104, 2105, 2106, 2107, 2108, 2109, 2110, 2111, 2112, 2113, 2114, 2115, 2116, 2117, 2118, 2119, 2120, 2121, 2122, 2123, 2124, 2125, 2126, 2127, 2128, 2129, 2130, 2131, 2132, 2133, 2134, 2135, 2136, 2137, 2138, 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2471, 2472, 2473, 2474, 2475, 2476, 2477, 2478, 2479, 2480, 2481, 2482, 2483, 2484, 2485, 2486, 2487, 2488, 2489, 2490, 2491, 2492, 2493, 2494, 2495, 2496, 2497, 2498, 2499, 2500, 2501, 2502, 2503, 2504, 2505, 2506, 2507, 2508, 2509, 2510, 2511, 2512, 2513, 2514, 2515, 2516, 2517, 2518, 2519, 2520, 2521, 2522, 2523, 2524, 2525, 2526, 2527, 2528, 2529, 2530, 2531, 2532, 2533, 2534, 2535, 2536, 2537, 2538, 2539, 2540, 2541, 2542, 2543, 2544, 2545, 2546, 2547, 2548, 2549, 2550, 2551, 2552, 2553, 2554, 2555, 2556, 2557, 2558, 2559, 2560, 2561, 2562, 2563, 2564, 2565, 2566, 2567, 2568, 2569, 2570, 2571, 2572, 2573, 2574, 2575, 2576, 2577, 2578, 2579, 2580, 2581, 2582, 2583, 2584, 2585, 2586, 2587, 2588, 2589, 2590, 2591, 2592, 2593, 2594, 2595, 2596, 2597, 2598, 2599, 2600, 2601, 2602, 2603, 2604, 2605, 2606, 2607, 2608, 2609, 2610, 2611, 2612, 2613, 2614, 2615, 2616, 2617, 2618, 2619, 2620, 2621, 2622, 2623, 2624, 2625, 2626, 2627, 2628, 2629, 2630, 2631, 2632, 2633, 2634, 2635, 2636, 2637, 2638, 2639, 2640, 2641, 2642, 2643, 2644, 2645, 2646, 2647, 2648, 2649, 2650, 2651, 2652, 2653, 2654, 2655, 2656, 2657, 2658, 2659, 2660, 2661, 2662, 2663, 2664, 2665, 2666, 2667, 2668, 2669, 2670, 2671, 2672, 2673, 2674, 2675, 2676, 2677, 2678, 2679, 2680, 2681, 2682, 2683, 2684, 2685, 2686, 2687, 2688, 2689, 2690, 2691, 2692, 2693, 2694, 2695, 2696, 2697, 2698, 2699, 2700, 2701, 2702, 2703, 2704, 2705, 2706, 2707, 2708, 2709, 2710, 2711, 2712, 2713, 2714, 2715, 2716, 2717, 2718, 2719, 2720, 2721, 2722, 2723, 2724, 2725, 2726, 2727, 2728, 2729, 2730, 2731, 2732, 2733, 2734, 2735, 2736, 2737, 2738, 2739, 2740, 2741, 2742, 2743, 2744, 2745, 2746, 2747, 2748, 2749, 2750, 2751, 2752, 2753, 2754, 2755, 2756, 2757, 2758, 2759, 2760, 2761, 2762, 2763, 2764, 2765, 2766, 2767, 2768, 2769, 2770, 2771, 2772, 2773, 2774, 2775, 2776, 2777, 2778, 2779, 2780, 2781, 2782, 2783, 2784, 2785, 2786, 2787, 2788, 2789, 2790, 2791, 2792, 2793, 2794, 2795, 2796, 2797, 2798, 2799, 2800, 2801, 2802, 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3633, 3634, 3635, 3636, 3637, 3638, 3639, 3640, 3641, 3642, 3643, 3644, 3645, 3646, 3647, 3648, 3649, 3650, 3651, 3652, 3653, 3654, 3655, 3656, 3657, 3658, 3659, 3660, 3661, 3662, 3663, 3664, 3665, 3666, 3667, 3668, 3669, 3670, 3671, 3672, 3673, 3674, 3675, 3676, 3677, 3678, 3679, 3680, 3681, 3682, 3683, 3684, 3685, 3686, 3687, 3688, 3689, 3690, 3691, 3692, 3693, 3694, 3695, 3696, 3697, 3698, 3699, 3700, 3701, 3702, 3703, 3704, 3705, 3706, 3707, 3708, 3709, 3710, 3711, 3712, 3713, 3714, 3715, 3716, 3717, 3718, 3719, 3720, 3721, 3722, 3723, 3724, 3725, 3726, 3727, 3728, 3729, 3730, 3731, 3732, 3733, 3734, 3735, 3736, 3737, 3738, 3739, 3740, 3741, 3742, 3743, 3744, 3745, 3746, 3747, 3748, 3749, 3750, 3751, 3752, 3753, 3754, 3755, 3756, 3757, 3758, 3759, 3760, 3761, 3762, 3763, 3764, 3765, 3766, 3767, 3768, 3769, 3770, 3771, 3772, 3773, 3774, 3775, 3776, 3777, 3778, 3779, 3780, 3781, 3782, 3783, 3784, 3785, 3786, 3787, 3788, 3789, 3790, 3791, 3792, 3793, 3794, 3795, 3796, 3797, 3798, 3799, 3800, 3801, 3802, 3803, 3804, 3805, 3806, 3807, 3808, 3809, 3810, 3811, 3812, 3813, 3814, 3815, 3816, 3817, 3818, 3819, 3820, 3821, 3822, 3823, 3824, 3825, 3826, 3827, 3828, 3829, 3830, 3831, 3832, 3833, 3834, 3835, 3836, 3837, 3838, 3839, 3840, 3841, 3842, 3843, 3844, 3845, 3846, 3847, 3848, 3849, 3850, 3851, 3852, 3853, 3854, 3855, 3856, 3857, 3858, 3859, 3860, 3861, 3862, 3863, 3864, 3865, 3866, 3867, 3868, 3869, 3870, 3871, 3872, 3873, 3874, 3875, 3876, 3877, 3878, 3879, 3880, 3881, 3882, 3883, 3884, 3885, 3886, 3887, 3888, 3889, 3890, 3891, 3892, 3893, 3894, 3895, 3896, 3897, 3898, 3899, 3900, 3901, 3902, 3903, 3904, 3905, 3906, 3907, 3908, 3909, 3910, 3911, 3912, 3913, 3914, 3915, 3916, 3917, 3918, 3919, 3920, 3921, 3922, 3923, 3924, 3925, 3926, 3927, 3928, 3929, 3930, 3931, 3932, 3933, 3934, 3935, 3936, 3937, 3938, 3939, 3940, 3941, 3942, 3943, 3944, 3945, 3946, 3947, 3948, 3949, 3950, 3951 |                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

- (ii) "subsidiary company" or "subsidiary" means a company or a holding company, or both a company in which the holding company owns at least 50 per cent share, that has full or the total share capital either in enjoyment or right to vote and control of the subsidiary company;

(b) For the purposes of SL No. 1(i),

"Bangalore Economic Commission" means the Bangalore Economic Commission established by the Treaty of Bangalore of 19th March, 1971;

(c) For the purposes of SL No. 1(A),

- (i) "data centre" means a dedicated secure space within a building or virtualised space for data processing and archiving, and there is provision for the purpose of collecting, storing, processing, distributing or otherwise moving or large volumes of data;
- (ii) "data centre services" means the services provided by a data centre through the use of physical infrastructure including land, buildings, mechanical electrical power equipments, cooling system, security and information technology infrastructure including servers, computers, storage systems, operating systems, security solutions, network and telecommunication services, network equipment, equipment, human resources in India;
- (iii) "specified data centre" means a data centre which is—
- (a) an exempted or approved scheme under notified law in India; or
  - (b) notified and specified by any Indian company;

## ARTICLE 11

[See sections 11]

### INCOME NOT TO BE INCLUDED IN TOTAL INCOME OF CERTAIN ELIGIBLE PERSONS INCLUDING INVESTMENT FUNDS, BUSINESS TRUSTS AND THEIR UNIT HOLDERS

In computing the total income of a tax unit of any eligible person mentioned in column C of the Table below, the income mentioned in column B of the said Table shall not be included, subject to the conditions mentioned in column D of the said Table, and the representations used in columns B to E of the said Table shall have the meanings respectively assigned to them in Notes below the said Table:

TABLE

| Sl. No. | Income not to be included in total income                                                                | Eligible persons    | Conditions |
|---------|----------------------------------------------------------------------------------------------------------|---------------------|------------|
| 1.      | Income of                                                                                                | Income of           | Income of  |
| 2.      | Any income other than the income chargeable under the head "Profits and gains of business or profession" | An individual (tax) | All        |

[illegible]

| B3<br>Risk | Structure that is the<br>structured financial<br>product                                                                                                                                                                                                                                                                                                                                                                                                                      | Eligible persons                                                                                                                                      | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A          | B                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | C                                                                                                                                                     | D                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                       | <p>(a) structure will be business entity<br/>having a ready market for its shares,<br/>bonds, deposits and anything not<br/>involving an holding company and will<br/>not have a normal distribution for<br/>its business needs</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| B          | Any financial firm<br>operating in a non-<br>bank regulated market<br>taking                                                                                                                                                                                                                                                                                                                                                                                                  | Nonbank capital<br>and deposit only non-<br>regulated capital<br>based either alone<br>or along with an<br>bank providing<br>options. 12-6, 201<br>b4 | All                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| C          | <p>Any financial or the<br/>business entity:</p> <p>(a) domestic<br/>(b) foreign<br/>(c) non bank, non-<br/>regulated market<br/>class. 12-12-1<br/>or</p> <p>(d) being taken into<br/>the public market<br/>the securities<br/>capital gains<br/>are derived as<br/>from business<br/>that gains under<br/>section 7(e)</p> <p>nothing from, an<br/>investment made by<br/>a special dividend to<br/>family business under<br/>forward debt or other<br/>capital on bank</p> | A special dividend<br>only                                                                                                                            | <p>(a) Bank investment:</p> <p>(i) is made before the<br/>1st April, 2003 but after<br/>before the 1st March,<br/>1991</p> <p>(ii) is made by an bank from<br/>year and</p> <p>(iii) is made:</p> <p>(A) a business entity<br/>having an eligible<br/>fund</p> <p>(B) an eligible bank<br/>structure under</p> <p>(C) an eligible Silver<br/>under Investment<br/>Fund</p> <p>(D) eligible bank<br/>in company or</p> <p>(E) an eligible from<br/>banking, Financial<br/>Company</p> <p>(ii) if any difficulty arises in<br/>implementing or implementing<br/>the provisions, the Board may<br/>make guidelines</p> <p>(iii) such guidelines shall be:</p> <p>(a) issued with the previous<br/>approval of the Central<br/>Bank of India</p> |

| 23.<br>Risk | Structure and the<br>structured financial<br>product | Eligible persons | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-------------|------------------------------------------------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 24          | 25                                                   | 26               | 27                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|             |                                                      |                  | <p>(ii) capital flows into the new<br/>ad participant and</p> <p>(iii) funding in the interim<br/>by Authority and the<br/>specified person;</p> <p>(ii) where any person has not<br/>been included in the trial he<br/>must either be a participant<br/>and a step by step up and<br/>one year the specified person<br/>has to satisfy one of these<br/>conditions so that the trial<br/>must not be a step by step<br/>up, each investor shall be<br/>eligible to receive the<br/>the income of the specified<br/>person of that year;</p> <p>(ii) where an eligible domestic<br/>investment fund has invest-<br/>ment of less than 10% in<br/>one or more of eligible re-<br/>structure entity or eligible<br/>domestic company or eligible<br/>Banking Financial Com-<br/>pany or an eligible bank<br/>must not be a step by<br/>step up or attributable to<br/>each investment, directly or<br/>indirectly, which is exempt<br/>from the calculation pro-<br/>portionately to that invest-<br/>ment made to one or more<br/>of the eligible infrastructure<br/>entity or eligible domestic<br/>company or eligible Bank<br/>Banking Financial Company<br/>or an eligible bank (as such<br/>investments may be permitted)</p> <p>(ii) where an eligible domestic<br/>company has investment of<br/>less than 10% in one or more</p> |

| S.S. No. | Structure used in the structural analysis (element)                                                                                              | Weight of element | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|----------|--------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1        | 2                                                                                                                                                | 3                 | 4                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|          |                                                                                                                                                  |                   | <p>of the rigidly inflexible body, because according to which no vertical or lateral displacements, directly or indirectly, relative to a support have to occur. The calculated proportions relative to the foundation must be clear for design of the rigidly inflexible body in such a way, in such a manner, as may be provided.</p> <p>(2) where an rigidly flexing frame (any structural) Company has loading of less than 10% in case no more of the rigidly inflexible body, relative to the support must be provided in such a manner as may be provided.</p> <p>(3) in case a concrete column head or girder head has been a horizontal, directly or indirectly, for the purpose of making investments in India, such head shall be deemed to be not rigidly inflexible body.</p> |
| 6.       | Any concrete building under section 10(13) and 13(1) of the Income Tax Act, 1961 (1961) of India, subject to the condition as specified therein. |                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

Mean 1....For the purposes of SE. Sec. 1, the expression "insurance fund" shall mean the insurance company to which section 224(1)(c) of

Mean 2....For the purposes of SE. Sec. 1, the expression "special purpose vehicle" means an Indian company in which the business must include controlling, managing and supervising the management of underwriting or interest in any or several of the businesses which each of the is special representation.

Mean 3....For the purposes of SE. Sec. 1 and 3, the expression "underwriter" shall have the same meaning as assigned to it in regulation 11(1)(g) of the Securities and Exchange Board of India (Real Estate Investment Trust) Regulations, 2017 made under the Securities and Exchange Board of India Act, 1992 (11 of 1992).

Mean 4....For the purposes of SE. Sec. 6....

(ii) "venture capital company" means a company which....

(i) has been granted a certificate of registration, before the 11 of May 2012, as a Venture Capital Fund and is regulated under the Securities and Exchange Board of India (Venture Capital Funds) Regulations, 1996 (Government of India) made under the Securities and Exchange Board of India Act, 1992 (11 of 1992); or

(ii) has been granted a certificate of registration as Venture Capital Fund as a sub-category of Category 2 Alternative Investment Fund and is regulated under the Securities and Exchange Board of India (Alternative Investment Funds) Regulations, 2012 (Government of India) made under the Securities and Exchange Board of India Act, 1992 (11 of 1992) and which holds the following conditions....

(i) it is not listed on a recognised stock exchange;

(ii) it has accepted and has been furnished to its certificate holder a copy of the equity shares or equity linked instruments of venture capital undertaking and;

(iii) it has not invested in any venture capital undertaking in which the director or a substantial shareholder through a beneficial owner of equity shares including 10% of the equity shares capital held, either individually or collectively, equity shares or equity of 10% of the paid-up equity share capital of such venture capital undertaking.

(iii) "venture capital fund" means a fund....

(i) operating under a trust deed legal entity under the provisions of the Securities Act, 1956 (11 of 1956), which....

(i) has been granted a certificate of registration, before the 11 of May 2012, as a Venture Capital Fund and is regulated under the Securities and Exchange Board of India (Venture Capital Funds) Regulations, 1996

(ii) has been granted a certificate of registration as Venture Capital Fund as a sub-category of Category 1 Alternative Investment Fund under the Alternative Investment Funds Regulations, 2012 as referred in regulation 18(2) of the Securities and Exchange Board of India (Alternative Investment Funds Management) Regulations, 2014 made under the Securities and Exchange Board of India Act, 1992 (11 of 1992) and which holds the following conditions....

(F) attraction is not less than five per cent of the net worth based on audited accounts, drawn up upon liquidation of bank or a capital undertaking;

(G) retained proceeds of any money raised under taking in public, subscription or through public, subscription, shall be wholly used in the mode shown by section 43 of the Banking Regulation Act, 1949, in respect of such retained capital undertaking;

(H) the bank, or any person for it, not entitled to any management, working charge; and

(I) any other condition as may be prescribed, or

(ii) operating as a reserve capital reserve made for the Last Days of India;

(ii) "retained capital undertaking" means—

(a) a company the undertaking as defined in regulation 13(1) of the Securities and Exchange Board of India (Foreign Capital) Regulations, 1959; or

(b) a company capital undertaking as defined in regulation 13(1)(a) of the Securities and Exchange Board of India (Foreign Investment) (Acquisition) Regulations, 1959.

(iii) For the purpose of the Act, it—

(a) "specialised person" means—

(i) a fully constituted body of the specified Government authority which—

(a) is a member of the United Arab Emirates; and

(b) makes investments, in order to implement, one of the fund raised by the Government of the United Arab Emirates;

(ii) a foreign institution, which satisfies the following conditions—

(a) it is fully owned and controlled, directly or indirectly, by the government of a foreign country;

(b) it is set up and regulated under the law of such foreign country;

(c) the earnings of the said fund are retained either for the purpose of the government of that foreign country, or to contribute to the development of that government, or that in furtherance of the earnings, income and benefits to and private persons;

(d) the fund of the said fund is for the purpose of such foreign country upon regulations;

(e) the provisions of items (F) and (G) shall not apply to any payment made by a resident or a person for such fund, or company for the purpose of, or for making investment in India;

(f) a foreign participant in the day-to-day operations of a bank for the "specialised person" or to which the bank is, with the person, including the right to appoint directors or officers, directors, shall not be regarded as participation in the day-to-day operations of the bank; and

1021 is a spending by the General Government, by contribution for the  
 1022 1023 1024 1025 1026 1027 1028 1029 1030 1031 1032 1033 1034 1035 1036 1037 1038 1039 1040 1041 1042 1043 1044 1045 1046 1047 1048 1049 1050 1051 1052 1053 1054 1055 1056 1057 1058 1059 1060 1061 1062 1063 1064 1065 1066 1067 1068 1069 1070 1071 1072 1073 1074 1075 1076 1077 1078 1079 1080 1081 1082 1083 1084 1085 1086 1087 1088 1089 1090 1091 1092 1093 1094 1095 1096 1097 1098 1099 1100 1101 1102 1103 1104 1105 1106 1107 1108 1109 1110 1111 1112 1113 1114 1115 1116 1117 1118 1119 1120 1121 1122 1123 1124 1125 1126 1127 1128 1129 1130 1131 1132 1133 1134 1135 1136 1137 1138 1139 1140 1141 1142 1143 1144 1145 1146 1147 1148 1149 1150 1151 1152 1153 1154 1155 1156 1157 1158 1159 1160 1161 1162 1163 1164 1165 1166 1167 1168 1169 1170 1171 1172 1173 1174 1175 1176 1177 1178 1179 1180 1181 1182 1183 1184 1185 1186 1187 1188 1189 1190 1191 1192 1193 1194 1195 1196 1197 1198 1199 1200 1201 1202 1203 1204 1205 1206 1207 1208 1209 1210 1211 1212 1213 1214 1215 1216 1217 1218 1219 1220 1221 1222 1223 1224 1225 1226 1227 1228 1229 1230 1231 1232 1233 1234 1235 1236 1237 1238 1239 1240 1241 1242 1243 1244 1245 1246 1247 1248 1249 1250 1251 1252 1253 1254 1255 1256 1257 1258 1259 1260 1261 1262 1263 1264 1265 1266 1267 1268 1269 1270 1271 1272 1273 1274 1275 1276 1277 1278 1279 1280 1281 1282 1283 1284 1285 1286 1287 1288 1289 1290 1291 1292 1293 1294 1295 1296 1297 1298 1299 1300 1301 1302 1303 1304 1305 1306 1307 1308 1309 1310 1311 1312 1313 1314 1315 1316 1317 1318 1319 1320 1321 1322 1323 1324 1325 1326 1327 1328 1329 1330 1331 1332 1333 1334 1335 1336 1337 1338 1339 1340 1341 1342 1343 1344 1345 1346 1347 1348 1349 1350 1351 1352 1353 1354 1355 1356 1357 1358 1359 1360 1361 1362 1363 1364 1365 1366 1367 1368 1369 1370 1371 1372 1373 1374 1375 1376 1377 1378 1379 1380 1381 1382 1383 1384 1385 1386 1387 1388 1389 1390 1391 1392 1393 1394 1395 1396 1397 1398 1399 1400 1401 1402 1403 1404 1405 1406 1407 1408 1409 1410 1411 1412 1413 1414 1415 1416 1417 1418 1419 1420 1421 1422 1423 1424 1425 1426 1427 1428 1429 1430 1431 1432 1433 1434 1435 1436 1437 1438 1439 1440 1441 1442 1443 1444 1445 1446 1447 1448 1449 1450 1451 1452 1453 1454 1455 1456 1457 1458 1459 1460 1461 1462 1463 1464 1465 1466 1467 1468 1469 1470 1471 1472 1473 1474 1475 1476 1477 1478 1479 1480 1481 1482 1483 1484 1485 1486 1487 1488 1489 1490 1491 1492 1493 1494 1495 1496 1497 1498 1499 1500 1501 1502 1503 1504 1505 1506 1507 1508 1509 1510 1511 1512 1513 1514 1515 1516 1517 1518 1519 1520 1521 1522 1523 1524 1525 1526 1527 1528 1529 1530 1531 1532 1533 1534 1535 1536 1537 1538 1539 1540 1541 1542 1543 1544 1545 1546 1547 1548 1549 1550 1551 1552 1553 1554 1555 1556 1557 1558 1559 1560 1561 1562 1563 1564 1565 1566 1567 1568 1569 1570 1571 1572 1573 1574 1575 1576 1577 1578 1579 1580 1581 1582 1583 1584 1585 1586 1587 1588 1589 1590 1591 1592 1593 1594 1595 1596 1597 1598 1599 1600 1601 1602 1603 1604 1605 1606 1607 1608 1609 1610 1611 1612 1613 1614 1615 1616 1617 1618 1619 1620 1621 1622 1623 1624 1625 1626 1627 1628 1629 1630 1631 1632 1633 1634 1635 1636 1637 1638 1639 1640 1641 1642 1643 1644 1645 1646 1647 1648 1649 1650 1651 1652 1653 1654 1655 1656 1657 1658 1659 1660 1661 1662 1663 1664 1665 1666 1667 1668 1669 1670 1671 1672 1673 1674 1675 1676 1677 1678 1679 1680 1681 1682 1683 1684 1685 1686 1687 1688 1689 1690 1691 1692 1693 1694 1695 1696 1697 1698 1699 1700 1701 1702 1703 1704 1705 1706 1707 1708 1709 1710 1711 1712 1713 1714 1715 1716 1717 1718 1719 1720 1721 1722 1723 1724 1725 1726 1727 1728 1729 1730 1731 1732 1733 1734 1735 1736 1737 1738 1739 1740 1741 1742 1743 1744 1745 1746 1747 1748 1749 1750 1751 1752 1753 1754 1755 1756 1757 1758 1759 1760 1761 1762 1763 1764 1765 1766 1767 1768 1769 1770 1771 1772 1773 1774 1775 1776 1777 1778 1779 1780 1781 1782 1783 1784 1785 1786 1787 1788 1789 1790 1791 1792 1793 1794 1795 1796 1797 1798 1799 1800 1801 1802 1803 1804 1805 1806 1807 1808 1809 1810 1811 1812 1813 1814 1815 1816 1817 1818 1819 1820 1821 1822 1823 1824 1825 1826 1827 1828 1829 1830 1831 1832 1833 1834 1835 183

Table 1. *Continued*

It is created as a subsidiary under the law of a foreign country (including the home state) by one of the political subdivisions. Being a separate legal entity, it is not subject to the laws of the home state.

[15] is a collection of two or more foreign countries and their citizens, corporations, firms, individuals that sell the insurance cover to a particular life and/or foreign country.

1977. Although practice guidelines do not directly affect organizational members' health, they may have deleterious effects on practice that indirectly affect the individual, including the right to a safe and sound work environment. There are several ways in which this may be put to question in the context of ergonomics of the demands.

1418 is significant (1% for Group 1, 5% for Group 2),  $\beta_2$  is significant at the 5% level for Group 1 and 1418 would have significant positive effect on the second period.

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12-1 The Public Government Fund of the Government of the Kingdom of Saudi Arabia

<sup>104</sup> is fully reported to Secretary of the Public Investment Fund of the Government of the Kingdom of Saudi Arabia, which...

11. *Journal of the American Medical Association*, 277, 1996, 1211-1212.

© 1998 Blackwell Science Ltd, *Journal of Internal Medicine* 243: 391–397

[illegible]

**Abstract**

14. *any future reference to currency by a contract is to a debt instrument, and, depending on the context, should be to a currency unit or the dollar.* *Any party to an arbitral award that does not state all the currency in which the awarding is made is bound to pay.*

100. Larry Green, *Indicators for Environmental Quality: A Preliminary Report* (Green 1992), pp. 10-11. Green also notes that the "most common" method of measuring environmental quality is a composite index of various indicators, but that such an index is not ideal.

[11] The degree of discomfort exhibited by various countries (Singapore and the United Kingdom) and by many trade regions has indicated how far trading partners have been able to tolerate reductions in quality. (p. 10)

1971) and whether respondents are likely to participate in future studies is of significant relevance, as the case indicates.

1998 "A Revolution in Management Science" *Business Week* 3700: 100-101

- (ii) the business of developing, co-operating with and maintaining, or developing, operating and maintaining, an infrastructure facility as defined in section 17(8) or
  - (iii) work substantially under the Central Government award made by notified authorities in this regard.
- (ii) "Eligible External Government Fund" means Capital Fund or Foreign Collaboration Government Fund...
- (i) registered under the Companies and Exchange Board of India (Management of Government Fund) Regulations, 1991 made under the Companies and Exchange Board of India Act, 1956 (11 of 1956);
  - (ii) having not less than fifty per cent of its net assets of the eligible infrastructure being an eligible domestic company or eligible Non-Banking Financial Company or an eligible trust, constituted in such manner as may be prescribed;
- (iii) "Eligible domestic company" means a domestic company...
- (i) set up and registered on or after the 1st April, 2011, and
  - (ii) having minimum 75% ownership in one or more of the eligible infrastructure facilities, constituted in such manner as may be prescribed;
- (iv) "Eligible Non-Banking Financial Company" means...
- (i) a non-banking financial company registered as an Infrastructure Finance Company and listed with stock exchange (BSE/NSE) and is monitored by the Reserve Bank of India as an Infrastructure Debt Fund, a non-banking financial company as referred to under Reserve Bank of India (Non-Banking Financial Company, Credit Facility Regulation and Supervision, 2005) issued by the Reserve Bank of India; and
  - (ii) having minimum 75% lending to one or more of eligible infrastructure facilities, constituted in such manner as may be prescribed; and
- (v) "Eligible trust" means an infrastructure Infrastructure Trust created by agreement dated...

## SCHEDULE IV

[By section 11]

### INCOME NOT TO BE INCLUDED IN TOTAL INCOME OF CERTAIN ELIGIBLE PERSONS IN INTERNATIONAL FINANCIAL SERVICES CENTRE OR PAYING INCOME THEREFROM

In computing the total income of a tax payer of any eligible persons, as mentioned in column E of the Table below, the income mentioned in column B of the said Table and the income as mentioned in any other column shall not be included, subject to the conditions mentioned in column D of the said Table, and the representations and as columns F to I of the said Table, shall have the meanings respectively assigned to them in the Notes below the said Table.

TABLE

| No.<br>No. | Description of the<br>transaction or event                                                                                                                                                                                                                                                | Applicable<br>provisions | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1          | 2                                                                                                                                                                                                                                                                                         | 3                        | 4                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1          | Any increase received<br>or arising in, or in<br>interest in, a result of<br>transfer of capital<br>asset situated in an<br>outside PRC (foreign)<br>jurisdiction, whether<br>placed in a corporation<br>which exchange has<br>made any determination<br>of Financial Services<br>Centre. | Not specified<br>here.   | <p>(i) Consideration to paid or pay<br/>able to non-resident foreign<br/>exchange;</p> <p>(ii) Interest shall not be included in<br/>the total income to the extent<br/>such interest is attributable to:</p> <ul style="list-style-type: none"> <li>(1) assets held by non-resident<br/>debt trust having the pre-<br/>sented characteristics of<br/>a loan contract in India;</li> <li>(2) the sustained duration<br/>of offshore banking unit;</li> <li>and</li> </ul> <p>(iii) The income receipt shall be<br/>exempted to such extent as<br/>may be provided.</p> |
| 2          | Any income received<br>or arising in, or in<br>interest in, a result of<br>transfer of securities<br>other than shares in<br>a company resident<br>in India.                                                                                                                              | Not specified<br>here.   | As specified in clause (b) of<br>section 10 against II No. 1.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 3          | Any income received<br>or arising in, or in<br>interest in, a result of<br>transfer of securities<br>other than shares in<br>a company resident<br>in India.                                                                                                                              | Not specified<br>here.   | <p>(i) Such income or interest shall<br/>not be included in the tax<br/>income of the holder;</p> <p>(ii) As specified in clause (b)<br/>and (c) of section 10 against<br/>II No. 1.</p>                                                                                                                                                                                                                                                                                                                                                                               |
| 4          | Any income from a<br>contracted term trust<br>which is chargeable<br>under the head "Profits<br>and gains of busi-<br>ness or profession".                                                                                                                                                | Not specified<br>here.   | As specified in clause (b) and (c) of<br>section 10 against II No. 1.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 5          | Any income received<br>or arising in, or in<br>interest in, a result of                                                                                                                                                                                                                   | Not specified<br>here.   | (i) Such income, interest or<br>dividend is not included in the<br>taxable income of the holder.                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

| No.<br>19a | Business must be for<br>exclusion for initial<br>purpose                                                                                                                                                                                                                                  | Eligible<br>persons | Conditions                                                                                                                                                                                                                                                                                                                       |
|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A          | B                                                                                                                                                                                                                                                                                         | C                   | D                                                                                                                                                                                                                                                                                                                                |
|            | <p>(i) transfer of any identifiable financial instrument or otherwise derivate (such as assets for sale) the transferor derivate; or</p> <p>(ii) distribution of income for which donor declares beneficial interest using the distribution</p>                                           |                     | <p>(i) an International Financial Review Center as referred to in section 147 or any Foreign Portfolio Investor being a part of an International Financial Review Center; and</p> <p>(ii) it shall such conditions, as may be prescribed.</p>                                                                                    |
| 2b.        | Any income by way of royalty or interest on Government loan or guaranteed or a debt or a loan                                                                                                                                                                                             | Non-eligible        | <p>(i) Such entity as referred to part by a part of an International Financial Review Center as referred to in section 147; and</p> <p>(ii) such unit has commenced its operations on or before the 31st March, 2010.</p>                                                                                                        |
| C          | <p>Any income derived from:</p> <p>(i) provision of services or financial products or funds, managed or administered by any person, his manager or behalf of his and partner;</p> <p>(ii) such activity carried out by such person or such by or on behalf by the Central Government.</p> | Non-eligible        | <p>(i) Such person, is referred to as person associated with an Offshore Banking Unit in any International Financial Review Center as referred to in section 147; and</p> <p>(ii) the sum of all the included in the total income shall be in the form of dividends or other income and is not deemed to be income in India.</p> |

| No.<br>No. | Business and/or the<br>Individual involved<br>(Business)                                                                                                                                                                     | Eligible<br>person(s)                                                                                                                                                      | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A          | B                                                                                                                                                                                                                            | C                                                                                                                                                                          | D                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 17         | Any dividend for non-<br>oil Capital gains arising from the transfer of equity shares of domestic company where such domestic company is a Unit of an International Financial Services Centre as referred to in section 143. | A non-resident, who is Unit of an International Financial Services Centre as referred to in section 143, engaged primarily in the business of trading of shares or a ship. | <p>(i) The domestic company:</p> <ul style="list-style-type: none"> <li>(a) is engaged primarily in the business of trading of securities or a ship;</li> <li>(b) has continuous operations on or before the 1<sup>st</sup> March, 2015 and</li> </ul> <p>(ii) conditions from total income shall be available for capital gains arising from the transfer of equity shares of such domestic company as a long term holding vehicle:</p> <ul style="list-style-type: none"> <li>(a) has tax credit beginning with the tax year in which the domestic company has commenced operations;</li> <li>(b) has tax credit beginning with the tax year commencing on or 1<sup>st</sup> April, 2015, where the period commencing on 1<sup>st</sup> April, 2015 ends before the 1<sup>st</sup> April, 2018.</li> </ul> |
| 18         | Any income arising or arising from, or derived from a specified fund or an transfer of such in a specified fund.                                                                                                             | A unit holder of a specified fund.                                                                                                                                         | (i).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 19         | Any income of the nature of Capital gains, arising or received or arising or received by a transfer of share of a company resident in India.                                                                                 | Any person or any other person.                                                                                                                                            | <p>(i) The Capital gain is not a transfer of shares by the resident fund or a specified fund; and</p> <p>(ii) such shares were purchased from the original fund or from its wholly owned special purpose vehicle, to the resident fund or individual, and the capital gain on such shares shall not be chargeable to tax if that individual has not taken place and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                      |

| Sl. No. | Business not to be included in initial business                                    | Eligible persons                                      | Conditions                                                                                                                                                                          |
|---------|------------------------------------------------------------------------------------|-------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                  | C                                                     | D                                                                                                                                                                                   |
|         |                                                                                    |                                                       | <p>(a) Business not to be included in the total business shall be in the foreign assets held by such resident or by such business as such business is doing for such resident.</p>  |
| 11      | Any business by way of deposits, bank or company, or any other financial business. | A Unit of any International Financial Services Centre | Such Unit is primarily engaged in the business of banking and other financial services.                                                                                             |
| 12      | Any business by way of interest payable.                                           | None                                                  | Such interest is payable by a Unit of an International Financial Services Centre as referred to in section 117 and which has commenced operations on or before the 1st March, 2010. |

Notes: For the purposes of Sl. Nos. 1 to 4:-

- (a) "convertible foreign exchange" means foreign exchange which is in the shape being treated by the Reserve Bank of India as convertible foreign exchange for the purposes of the Foreign Exchange Management Act, 1999 (43 of 1999) and the rules made thereunder;
- (b) "financial services of offshore banking unit" means an investment services or a banking unit of a non-resident located in an International Financial Services Centre as referred to in section 117 and which has commenced operations on or before the 1st March, 2010;
- (c) "manager" shall have the same meaning as assigned to it in regulation 11 (1) of the Securities and Exchange Board of India (Foreign Investment) Regulations, 2002 (33 of 2002);
- (d) "person or a firm" shall have the meaning assigned to it in section 17(1);
- (e) "residence" shall have the same meaning as assigned to it in section 117 of the Securities and Exchange Management Act, 1999 (43 of 1999) and shall also include such other person or firm as may be notified by the Central Government in that behalf.

- [illegible]

23. *Journal of the American Statistical Association*, 1997, 92, 1039-1044.

- **Not suitable** all the spots are held by some individuals (e.g. male)
- **Not** they must be held by a dominant or dominant
- **Not** or there are several females or individuals having access to all during the time or at which males can be easily repelled. However, in individual species, sometimes 20% or 70 or 90 or 95 or 100% of the females give up because of limited space
- **Not** because while doing this, e.g. a pair takes up 5% of the number of spots but they're explicit that the likelihood of having an area covered 70% of the total area is much smaller than the actual effort, sometimes it may be considered as

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(ii) "publicly available" including maintenance of records necessary for the information disclosure system for public use;

(iii) "issuer" shall have the same meaning as assigned to it in regulation 29(1)(b) of the Securities and Exchange Board of India (Intermediary Regulations) (SEBI) made under the Securities and Exchange Board of India Act, 1992 (SEI Act of 1992);

(iv) "fund" means a trust constituted under the Indian Trusts Act, 1882 (IT Act of 1982) or otherwise in law;

(v) "unit" means fractional interest in an interest in the fund and shall include shares or partnership interest;

State 3: For the purposes of SEI, Sec. 4....

"Foreign Portfolio Investor" shall have the same meaning as assigned to it in regulation 29(1)(c) of the Securities and Exchange Board of India (Foreign Portfolio Investors) Regulations, SEBI made under the Securities and Exchange Board of India Act, 1992 (SEI Act of 1992);

State 4: For the purposes of SEI, Sec. 6, 8 and 11....

(i) "portfolio" means an investment in a security or in a group of securities or a debt security or any part thereof;

(ii) "ship" means a ship or any vessel capable of carrying goods or passengers or any part thereof;

State 5: For the purposes of SEI, Sec. 1....

"portfolio manager" shall have the same meaning as assigned to it in regulation 29(1)(d) of the International Financial Services Centres Authority (Regulated Entities) Regulations, 2020 made under the International Financial Services Centres Authority Act, 2019 (IFSC Act of 2019);

State 6: For the purposes of SEI, Sec. 4....

(i) "specified fund" shall have the same meaning as assigned to it by SEBI, 2020;

(ii) "unit" means fractional interest in an interest in the fund and shall include shares or partnership interest;

State 7: For the purposes of SEI, Sec. 10....

(i) "unlisted fund", "investment" and "fundraising" shall have the meanings respectively assigned to them in section 2(67);

(ii) "unlisted fund" shall have the meaning assigned to it in Section 2(67);

State 8: For the purposes of SEI, Sec. 11....

"unit" shall have the same meaning as assigned to it in section 29(1)(e) of the Securities and Exchange Board of India Act, 1992 (SEI Act of 1992);

# ARTICLE 12

[See section 11]

## FINANCIAL EXEMPTION FROM TAX

Any eligible person, mentioned in column B of the Table below, shall not be liable to pay income tax on the total income for any tax year, subject to the conditions mentioned in column C of the said Table, and the exemptions listed in columns B and C of the said Table, shall have the meanings respectively assigned to them in the Notes below the said Table.

TABLE

| Sl. No. | Eligible persons                                                                                                                                                       | Conditions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|---------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                                                                                      | C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1       | Any registered Fund or Trust, whether Fund established for the stated purpose of the Funds.                                                                            | Such Fund is for the welfare of the poor and poorest members of the stated areas or their dependants.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 2       | Any Fund established for such purposes as may be notified by the Board for the purpose of providing to their dependants and such religious and religious of such fund. | <p>(a) Such fund—</p> <ul style="list-style-type: none"> <li>(i) application money or money lent for applications, wholly and exclusively for the objects for which it is established; and</li> <li>(ii) income, its funds and contributions and other investments, by law the former or made or received in section 100.</li> </ul> <p>(b) Such fund is approved by the Principal Commissioner of Charitable Trusts and may be purchased and such approval shall as any one of its beneficiaries for such fund year or years not exceeding three tax years as specified in the rules of approval.</p> |
| 3       | Any fund for whatever purpose set up by the Life Insurance Corporation of India on or after the 1st August, 1955, or any other insurer under a pension scheme.         | <p>(a) The contribution to such or such persons for the purpose of securing pension from such fund; and</p> <p>(b) such scheme is approved by the Commission of Insurance of the Insurance Regulatory and Development Authority established under section 513 of</p>                                                                                                                                                                                                                                                                                                                                   |

| Sl. No. | Bills/Acts/Provisions                                                                                                                                                                                                                                                                                                                   | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|---------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                                                                                                                                                                                                                                                       | C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|         |                                                                                                                                                                                                                                                                                                                                         | the Insurance Regulatory and Development Authority Act, 1997 (21 of 1997).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 10      | An authority to be known as the Board of Village Industries shall be known by that name.                                                                                                                                                                                                                                                | Such authority to be established in a State by or under a State Act or Provincial Act for the development of handicraft or village industries in the State.                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 11      | Any body or authority established or to be established or to be established by or under any Central Act or State Act or Provincial Act.                                                                                                                                                                                                 | <p>(a) Such body or authority provided for the administration of any land in any of public religious or charitable trusts or endowments (including temples, graveyards, wells, charities, hospitals, hospitals or any other place of public religious endowment or trust) for religious or charitable purposes, regulated under the Societies Registration Act, 1860 (21 of 1860), or any other law; and</p> <p>(b) evaluation from total income as provided for in the Act and for available in any other manner or source being subject to be determined by the authority.</p> |
| 12      | RECENT Final for Regional Projects set up by Colombia Declaration issued on the 14th December, 1988 for the Member States to participate in the Member States of North Atlantic Association for Regional Cooperation established on the 14th December, 1988 for the Charter of the North Atlantic Association for Regional Cooperation. | 1988                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 13      | Insurance Regulatory and Development Authority established under section 3(1) of the Insurance Regulatory and Development Authority Act, 1997 (21 of 1997).                                                                                                                                                                             | 1997                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

| Sl. No. | Bills/Proposals                                                                                                                                                        | Comments                                                                                                                                                                                                                                                                                                                                                                        |
|---------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                                                                                      | C                                                                                                                                                                                                                                                                                                                                                                               |
| 6       | Central Electricity Regulatory Commission constituted under section 76(1) of the Electricity Act, 2003 (36 of 2003).                                                   | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 7       | Prasar Bharti/Broadcasting Corporation of India) established under 2(1) of the Prasar Bharti (Broadcasting Corporation of India) Act, 1996 (18 of 1996).               | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 10      | The Prime Minister's National Relief Fund: the Prime Minister's Office Assistance and Relief to Needy poor: Education Fund (PM CARES FUND).                            | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 11      | The Prime Minister's Fund (Prime Minister's Relief Act).                                                                                                               | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 12      | The Prime Minister's Relief to Students Fund.                                                                                                                          | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 13      | The National Foundation for Communal Harmony.                                                                                                                          | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 14      | The Swachh Bharat Kosh, set up by the Central Government.                                                                                                              | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 15      | The Green Camps Fund set up by the Central Government.                                                                                                                 | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 16      | The Chief Minister's Relief Fund or the Government/ Government's Relief Fund to support of any Welfare Union societies as referred to in section 10B(1)(a) of the Act. | Nil                                                                                                                                                                                                                                                                                                                                                                             |
| 17      | Any University or other educational institutions wholly or substantially financed by the Government.                                                                   | <p>(a) It means solely for educational purposes and not for purposes of profits and</p> <p>(b) If the Government grants to such University or other educational institutions exceeds such percentage of the total receipts (including any donations) as may be prescribed, in such University or other educational institutions, it shall be treated as being substantially</p> |

| 2018<br>2019 | Eligible providers                                                                                                    | Standards                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|--------------|-----------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A            | B                                                                                                                     | C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1.8          | Any hospital or other institution<br>acutely or substantially funded by<br>the Government                             | <p>funded by the Government<br/>during the relevant tax year;</p> <p>(a) is for the reception and<br/>treatment of persons suffering<br/>from illness or mental disorder;<br/>and, or for the reception and<br/>treatment of persons during<br/>convalescence or of persons<br/>suffering medical ailments or<br/>inhabilitation;</p> <p>(b) is not solely for pharmaceutical<br/>preparations and not for the pur-<br/>poses of profit; and</p> <p>(c) if the Government grant to such<br/>hospital or other institution<br/>represents a percentage of the<br/>total comprehensive expendi-<br/>tures, as may be prescribed,<br/>of such hospital or other insti-<br/>tution, it shall be considered<br/>acutely or substantially funded<br/>by the Government during the<br/>relevant tax year.</p> |
| 1.9          | <p>(a) Any University or other educa-<br/>tional institution;</p> <p>(b) any hospital or other institu-<br/>tion.</p> | <p>(a) Such University or other edu-<br/>cational institution solely for<br/>educational purposes and<br/>not for the purposes of profit;</p> <p>(b) any hospital or other institu-<br/>tion is for the reception and<br/>treatment of persons suffering<br/>from illness or mental disorder;<br/>and, or for the reception and<br/>treatment of persons during<br/>convalescence or of persons<br/>suffering medical ailments or<br/>inhabilitation;</p> <p>(c) any hospital or other insti-<br/>tution solely for phar-<br/>maceutical purposes and not for<br/>the purposes of profit; and</p>                                                                                                                                                                                                      |

| Sl. No. | Applicable provisions                                                                                                                             | Comments                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                                                                 | C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|         |                                                                                                                                                   | <p>(a) the aggregated annual receipts of each University or University or educational institution or institutions; and hospital or hospitals or institutions or institutions, does not exceed the prescribed limits;</p> <p>(b) where such University or other educational institution or each hospital or other institution provides any accommodations for medical staff and other persons (other than the medical staff) the provisions of sub-rule (1)(a) shall apply to such aggregated annual receipts as they apply in the case of a registered and profit organisation and such unincorporated institution shall be excluded from the computation of such receipts.</p> |
| 10      | A Mutual Fund registered under the Securities and Exchange Board of India Act, 1956 (19 of 1956) or regulations made thereunder.                  | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 11      | Any Mutual Fund set up to regulate certain bank or a public financial institution or regulated by the Reserve Bank of India.                      | Such conditions as the Central Government may, by notification, specify.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 12      | A registered provident fund.                                                                                                                      | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 13      | An approved superannuation fund.                                                                                                                  | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 14      | A registered gratuity fund.                                                                                                                       | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 15      | Employees' Provident Fund established under section 11 of the Civil Moneys, Provident Funds, and Miscellaneous Provisions Act, 1938 (19 of 1938). | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 16      | Employees' Provident Fund established under section 11 of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (11 of 1952).     | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

| Sl. No. | Description                                                                                                                                                                                          | Remarks                                                                                                                                                                                                                                   |
|---------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A       | B                                                                                                                                                                                                    | C                                                                                                                                                                                                                                         |
| 177.    | Employees' State Insurance Fund set up under the provisions of the Employees' State Insurance Act, 1948 (34 of 1948).                                                                                | Nil                                                                                                                                                                                                                                       |
| 178.    | An agricultural produce market committee or board constituted under such law.                                                                                                                        | Such committee or board is constituted for the purpose of regulating the marketing of agricultural produce.                                                                                                                               |
| 179.    | A corporation established by a Central Act or State Act or Provincial Act or any other body institution or establishment (through body institution or association which is owned by the Government). | Such corporations or other body or institutions or associations has been established or formed for promoting the interests of the members of the Scheduled Caste or the Scheduled Tribes or both or both or of any part, or all, of them. |
| 180.    | A corporation established by the Central Government or any State Government for promoting the interests of the members of a society, community.                                                      | Nil                                                                                                                                                                                                                                       |
| 181.    | Any corporation established by a Central Act or State Act or Provincial Act for the welfare and economic upliftment of corporations being the officers of India.                                     | Nil                                                                                                                                                                                                                                       |
| 182.    | Any co-operative society formed for promoting the interests of the members of either the Scheduled Caste or Scheduled Tribes, or both.                                                               | Memberships of such co-operative society shall consist of only other co-operative societies formed for similar purposes and the interests of the society are protected by the Government and such other bodies.                           |
| 183.    | Coast Guard constituted under section 3 of the Coast Act, 1942 (27 of 1942).                                                                                                                         | Nil                                                                                                                                                                                                                                       |
| 184.    | Coastal Guard constituted under section 41 of the Indian Coast Act, 1957 (14 of 1957).                                                                                                               | Nil                                                                                                                                                                                                                                       |
| 185.    | Tax Board established under section 4 of the Tax Act, 1951 (23 of 1951).                                                                                                                             | Nil                                                                                                                                                                                                                                       |
| 186.    | Tobacco Board constituted under the Tobacco Board Act, 1955 (4 of 1955).                                                                                                                             | Nil                                                                                                                                                                                                                                       |

| Sl. No. | Bills/provisions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Comments                                                                                      |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|
| A       | B                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | C                                                                                             |
| 107     | Marine Products Export Development Authority established under section 4 of the Marine Products Export Development Authority Act, 1972 (13 of 1972).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Nil                                                                                           |
| 108     | Agricultural and Processed Food Products Export Development Authority established under section 4 of the Agricultural and Processed Food Products Export Development Act, 1983 (2 of 1983).                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Nil                                                                                           |
| 109     | Spices Board constituted under section 3(1) of the Spices Board Act, 1986 (15 of 1986).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Nil                                                                                           |
| 110     | Cane Board established under section 4 of the Cane Industry Act, 1981 (55 of 1981).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Nil                                                                                           |
| 111     | New Pension System Trust established on the 27th February, 2008 under the provisions of the Indian Trusts Act, 1882 (2 of 1882).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Nil                                                                                           |
| 112     | <p>Any body or authority or Board or Trust or Commission, not being a company, which has been established or constituted by or under a Central Act or State Act with one or more of the following purposes:-</p> <ul style="list-style-type: none"> <li>(a) dealing with and satisfying the need for housing accommodation;</li> <li>(b) planning, development or improvement of cities, towns and villages;</li> <li>(c) regulating, or regulating and developing, any activity for the benefit of the general public; or</li> <li>(d) regulating any matter, for the benefit of the general public, relating with the subject for which it has been created.</li> </ul> | Such body or authority or Board or Trust or Commission is notified by the Central Government. |

| Sl. No. | Description                                                                                                                                                                                                                                                   | Comments                                                                                                                                                                                                                                                                                                                                                                                    |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | 2                                                                                                                                                                                                                                                             | 3                                                                                                                                                                                                                                                                                                                                                                                           |
| 01      | National Credit Guarantee Trustee Company Limited being a company established and wholly financed by the Central Government for the purpose of operating credit guarantee funds established and wholly financed by the Central Government.                    | Nil                                                                                                                                                                                                                                                                                                                                                                                         |
| 02      | A credit guarantee fund established and wholly financed by the Central Government and managed by the National Credit Guarantee Trustee Company Limited.                                                                                                       | Nil                                                                                                                                                                                                                                                                                                                                                                                         |
| 03      | Credit Guarantee Fund Trust for Micro and Small Enterprises being a trust created by the Central Government and the Small Industries Development Bank of India under provision 2(1) of the Small Industries Development Bank of India Act, 1986 (33 of 1986). | Nil                                                                                                                                                                                                                                                                                                                                                                                         |
| 04      | An infrastructure debt fund.                                                                                                                                                                                                                                  | Such Fund is set up as per the guidelines issued by the Central Government in consultation.                                                                                                                                                                                                                                                                                                 |
| 05      | An infrastructure debt fund financing the infrastructure and development set up under an Act of Parliament.                                                                                                                                                   | Such fund will have total income is for ten consecutive years, beginning from the ten year in which such fund is set up and such fund is supported by the Central Government.                                                                                                                                                                                                               |
| 06      | A developmental financing institution, formed by the Reserve Bank of India under an Act of Parliament referred to in paragraph number 17.                                                                                                                     | <p>(a) Such institution is created by the Central Government.</p> <p>(b) contribution of such income from the total income is for five consecutive ten years beginning from the ten years in which the developmental financing trust is set up and</p> <p>(c) the Central Government may, by notification extend the period of extension for a further period not exceeding five years.</p> |







## **Conditions for claiming deduction.**

**2.** [(1) The deduction under paragraph 1 shall be allowed if the assessee:-

- (a) is carrying on the business of printing and manufacturing the so called newspapers in India during the tax year;
- (b) has, before the expiry of six months from the end of the tax year in which the accounts of the printing business are kept, submitted in writing, deposited and retained for the specified account being:-
  - (i) a special account not deposited with the National Bank or any other bank, and for the purposes specified in the special scheme; or
  - (ii) a deposit account in a scheduled bank, and for the purposes specified in the deposit scheme; and
- (c) gets the particulars of such business for the relevant tax year certified by an accountant before the specified date referred to in sub-section (1) and has submitted the audit report, in such form and manner as may be prescribed and verified by such accountant, by that date.

[(1) Where the account is required by or under any other law to get the account audited, then it shall be sufficient compliance of sub-paragraph (1)(c), if such account:-

- (a) gets the accounts of such business audited under such law before the specified date referred to in sub-section (1); and
- (b) conforms to that that the report of such audit and a report by an accountant on the facts referred to in sub-paragraph (1)(c).

[(1) If any deduction has been allowed under paragraph 1 in any tax year the deduction shall be allowed in respect of such account in subsequent tax years.

[(1) Where the account referred to in paragraph 1 is in form of an accumulation of profits or funds of individuals, the deduction under paragraph 1 shall not be allowed in computing the income of any of the partners or members of such account.

## **Withdrawal from special account or deposit account.**

**2.** [(1) Any amount standing to the credit of the account in the special account shall not be allowed to be withdrawn except for the purposes specified in the special scheme or, in the deposit scheme, or in the circumstances specified below:-

- (a) division of business; or
- (b) death of an assessee; or
- (c) partition of a Hindu undivided family; or
- (d) dissolution of a firm; or
- (e) liquidation of a company.

[(1) Any amount standing to the credit of the account in the special account in withdrawal during any tax year by the assessee for the purposes referred to in sub-paragraphs (1)(a) and (1)(b), the scheme of such account shall be deemed to be the profits and gross of business or production of that tax year and shall accordingly be charged to income tax for that tax year, as if the business had not been closed in that tax year had not been dissolved respectively.

(A) Irrespective of anything contained in sub-paragraph (B), it:

(a) any amount standing to the credit of the account in the special account is released by the National Bank or institution for the account from the deposit account, during any tax year; and

(b) such account is utilized for the purchase of specified articles or thing, the whole or such amount as released shall be deemed to be the profits and gains of business of that tax year and shall accordingly be charged to income tax for that tax year.

(B) If any amount standing to the credit of the account:

(a) in the special account is released by the National Bank; or

(b) is withdrawn by the account from the deposit account;

during any tax year the withdrawal from the proceeds of such business for the special account or deposit scheme shall be deemed to be so withdrawn, either wholly or partly, within that tax year; such amount, not so utilized shall be deemed to be the profits and gains of business of that tax year and shall accordingly be charged to income tax for that tax year.

(C) The provisions of sub-paragraph (B) shall not apply in cases where general tax is released during any tax year in relation to the account in circumstances referred to in sub-paragraphs (D)(b), (E)(a) and (F)(a).

(d) In sub-paragraph (C), "specified article or thing" means:

(a) any machinery or plant to be installed in any office premises or in other land or construction, including any construction in the nature of a greenhouse;

(b) any other appliance (not being computer);

(c) any machinery or plant the whole or the several parts of which is utilized in a distinct and identifiable type of operation in an office or in any part of an undertaking the income of which would under the head "Profits and gains of business or profession" of any tax year year;

(d) any other machinery or plant to be installed in an office or in any part of an undertaking for the purpose and business of construction, manufacture or production of any article or thing specified in the list in Schedule 2B.

No deduction of expenditure will through the account withdrawn from special account.

4. If the amount standing to the credit of the account in special account is withdrawn for the purpose of such business as per the special account or deposit scheme, no deduction against such expenditure shall be allowed in computing the income chargeable under the head "Profits and gains of business or profession".

None taxability of assets acquired as per special scheme or deposit scheme.

5. (1) Where any asset:

(a) is acquired in connection with the special scheme or the deposit scheme; and

(iii) is sold or transferred to any person in the last year of any time before expiry of eight years from the end of last year in which such asset was disposed.

Then, the part of cost of asset which is referable to the deduction allowed under paragraph (i) shall be deemed to be the profits and gains of business in that last year in which such asset is sold or transferred and shall accordingly be charged to the income tax for that last year.

(ii) This proposed sub-paragraph (i) shall not apply if the asset is sold or transferred to—

- (a) for the purpose of the specified process, or
- (b) for a direct or indirect acquisition in connection with an exercise of functions or provisions of the then in force company subject to the following specific matters:—
  - (i) the provisions of special scheme or deposit scheme as applicable to the company in the same manner as it applied to the firm;
  - (ii) all the properties of the firm relating to the business or profession immediately before the conversion become the properties of the company;
  - (iii) all the liabilities of the firm relating to the business or profession immediately before the conversion become the liabilities of the company; and
  - (iv) all the shareholders of the company were partners of the firm immediately before the conversion.

(iii) In this paragraph, "specified process" means—

- (a) Government; or
- (b) a local authority; or
- (c) a corporation established by or under a Central State or Provincial Act; or
- (d) a Government company as defined in section 2(45) of the Companies Act, 2013 (18 of 2013).

**Interpretation.**

8. For the purposes of this Schedule—

- (a) "Coffee Board" means the Coffee Board constituted under section 4 of the Coffee Act, 1942 (17 of 1942);
- (b) "deposit account" means an account opened by the maker for making deposits by the maker or contribution with and for the purpose specified in the deposit scheme;
- (c) "deposit scheme" means the scheme made by the Tax Board or the Co-Op. Tax Board or the Coffee Board with the prior approval of the Central Government;
- (d) "National Bank" means the National Bank for Agriculture and Rural Development established under section 3 of the National Bank for Agriculture and Rural Development Act, 1981 (66 of 1981).

- (g) "Reserve Board" means the Reserve Board constituted under section 8 (1) of the Reserve Act, 1947 (21 of 1947);
- (h) "special account" means an account maintained by the Manager of the National Bank for making deposits in accordance with and for the purposes specified in the special scheme;
- (i) "special scheme" means the scheme approved by the Board for the Tax Board or the Coffee Board or the Rubber Board;
- (j) "special account" means a special account or a deposit account;
- (k) "Tax Board" means the Tax Board established under section 4 of the Tax Act, 1948 (28 of 1948).

## **CHAPTER 2**

### **[Sec. sections 4 to 10]**

#### **DEDUCTION FOR RITA HISTORICALY FROM FOR COMPUTING INCOME UNDER THE HEAD "PROFIT AND LOSS OF BUSINESS OR PROFESSION"**

##### **Quantum of deduction.**

3. (1) An assessee shall be allowed deduction of—

- (a) the amount or aggregate of the amount deposited by the assessee in the account mentioned in paragraph 1; or
- (b) fifteen per cent of such business computed under the head "Profit and loss of business or profession" before making any deduction under this paragraph,

whichever is less.

(2) The deduction shall be allowed before allowing set off or loss, if any, brought forward from earlier tax years as per section 112.

(3) Any interest credited to the special account shall be deemed to be a deposit.

##### **Conditions for claiming deduction.**

4. (1) Deduction under paragraph 1 shall be allowed if the assessee—

- (a) is, during the tax year, carrying on the business consisting of the processing, use or extraction or production of petroleum or natural gas or rock or lime, or any other mineral or substance, or any other business, and has entered into an agreement with the Central Government for such business;
- (b) has, before the end of the tax year, deposited any amount in the special account, being—
  - (i) a special account maintained with the State Bank of India in accordance with, and for the purposes specified in the special scheme; or
  - (ii) a like government account in accordance with, and for the purposes specified in the deposit scheme; and
- (c) gets the accounts of such business for the relevant tax year audited by an appointed auditor of the special kind as set forth in the rules made by

submit the audit report, in both form and content, as may be prescribed and verified by such authorities, by that date.

(11) Where the expense is incurred, by or on the day when the report is submitted or, if not submitted, then it shall be sufficient compliance of such paragraph (10), if such expense—

- (a) was the amount of such business-related costs which have been the specified date referred to in section 10, and
- (b) incurred by that date the report of such audit and a report by an accountant in such form referred to in sub-paragraph (10).

(12) If any deduction has been allowed under paragraph 1 or any law made or deduction shall be allowed in respect of such amount in any other law made.

(13) Where the expense referred to in paragraph 1 is a firm or an association of persons or body of individuals, deduction under paragraph 1 shall not be allowed in computing the income of any of the partners or members or such persons.

**Withheld from specified persons.**

(14) Any amount standing to the credit of the person in the specified account shall not be allowed to be withdrawn except for the purpose specified in the special account or in the deposit relation.

(15) In spite of the prohibition contained in sub-paragraph (1), if the amount is utilized for the purchase of specified article or things, then such amount shall not be allowed as deduction under paragraph 1.

(16) For the purpose of this paragraph, "specified article or thing" means—

- (i) any machinery or plant to be installed in any office premises or residential accommodation, including any construction in the nature of a ground house;
- (ii) any other appliances (except computers);
- (iii) any machinery or plant, the whole of the annual cost of which paid during a calendar year (whether by way of depreciation or otherwise) in computing the income chargeable under the head "Profits and gains of business or profession" of any year has been;
- (iv) any other machinery or plant to be installed in an office or in undertaking for the purpose of business or profession; machinery or plant free of cost either in thing specified in the law in Schedule XII.

(17) Where any amount standing to the credit of the person in specified account or otherwise represents or such amount in any law made, then the amount payable or credit shall be allowed to for the profits and gains of business or profession for the last year and accordingly the following amount shall be charged to income tax for that year—

$$B - B_1 - C$$

where—

- A = amount payable and paid of business or profession of that year;
- B = amount withdrawn from the specified account up to the end of year;

(C) is payment of any payable under Current Government for sale of profit or product made but is permitted in agreement with the said for any other (14).

(H) Where any amount is withdrawn or a change of specified amount in a tax year in which the business of the business is no longer in existence, sub-paragraph (J) shall apply as if the business is in existence by that tax year.

(I) If any amount standing in the credit of the business:

(a) in the specified account is released by the State Bank of India, or

(b) is withdrawn by the business from the specified account,

during any tax year for utilisation for the purpose of a scheme as a special scheme or deposit scheme and the same is not an interest, either wholly or in part, which that tax year, such amount shall be deemed to be the profits and gains of business of that tax year and accordingly be charged to income-tax for that tax year.

(J) Where any amount standing in the credit of the business in the specified account or in that State Bank of India is utilised for the purpose of any expenditure in connection with such business in accordance with the scheme or the deposit scheme, such expenditure shall not be allowed in computing the income chargeable under the head "Profits and gains of business or profession".

**No deduction of expenditure not through amount withdrawn from specified account.**

4. (1) If the amount standing in the credit of the business in the specified account is utilised for any expenditure for the purpose of business in any tax year the special scheme or deposit scheme, no deduction against such expenditure shall be allowed in computing the income chargeable under the head "Profits and gains of business or profession".

(2) In this paragraph, "amount standing in the credit of the business in the specified account" has the same meaning as in section 10.

**Safe or transfer of asset acquired as per special scheme or deposit scheme.**

5. (1) Where an asset:

(a) is acquired as per the special scheme or the deposit scheme, and

(b) is sold or transferred to any person in the tax year in which it is sold or transferred, or

except that part of such asset is not utilised in the discharge of the special scheme or deposit scheme, it shall be deemed to be the profits and gains of business of that tax year in which such asset is sold or transferred and shall accordingly be charged to income-tax for that tax year.

(2) Sub-paragraph (1) shall not apply if the asset is sold or transferred by:

(a) the business in the specified period, or

(b) a firm or company in connection with a recognised business or profession and if the firm or such company is engaged in the business of such nature.

(3) The provisions of special scheme or deposit scheme is applicable for the company in the same manner as it applied for the firm.

- (iii) all the properties of the firm relating to the business or profession, immediately before the movement between the properties of the company;
- (iv) all the liabilities of the firm relating to the business or profession, immediately before the movement between the liabilities of the company; and
- (v) all the shareholders of the company were partners of the firm immediately before the movement.

(1) In this paragraph, "specified person" means:-

- (a) Government;
- (b) a local authority; or
- (c) a corporation established by or under a Central, State or Provincial Act;
- (d) a Government company as defined in section 2(45) of the Companies Act, 2013 (18 of 2013).

#### **Interpretation.**

6. For the purposes of this Schedule:-

- (a) "movement relating to the assets of the business" pertaining to the specified movement includes interest accrued to such movement;
- (b) "deposited scheme" means a scheme made or held in by the Ministry of Petroleum and Natural Gas;
- (c) "specified account" means a special account as defined in section 2(45);
- (d) "special account" means an account established with the State Bank of India for making deposits in accordance with, and for the purposes specified in the special scheme;
- (e) "special scheme" means a scheme approved or held in by the Government of India or the Ministry of Petroleum and Natural Gas;
- (f) "the specified account" means an account opened by the business for making deposits in accordance with, and for the purposes specified in the special scheme;
- (g) "State Bank of India" means the State Bank of India constituted under the State Bank of India Act, 1955 (23 of 1955).

### **SCHEDULE II** **[New section 127A]**

#### **PART I** **RESERVED PROVISION FUNDS**

##### **Application of Part**

8. This Part shall not apply to any provision fund to which the Provision Funds Act, 1913 (37 of 1913), applies.

## **Definitions**

**2. For the purposes of this Part, unless the context otherwise requires:**

- (a) "approving authority" means the Principal Chief-Commissioner or Chief Commissioner or Principal Commissioner or Commissioner;
- (b) "employee" means any person who maintains a provident fund for the benefit of him or his employees, being:
  - (i) a Hindu undivided family company, firm or other association of persons; or
  - (ii) an individual engaged in a business or profession, the profits and gains thereof are available for income tax under the head "Profits and gains of business or profession";
- (c) "employee" means an employee participating in a provident fund, including principal or domestic servant;
- (d) "contributions" means amounts paid by or on behalf of any person in respect of his salary or by an employer out of his own funds, for the credit of account of an employee, including any sum credited as bonus;
- (e) "balance in the credit of an employee" means the total amount in the credit of his individual account in a provident fund at any time;
- (f) "annual average" in relation to the balance in the credit of an employee means the amount in such balance, at any time, averaged from year to year; and
- (g) "accumulated balance due to an employee" means the balance in the credit, at present or at all antecedents by the employee under the provident fund of the fund, on the day he ceases to be an employee of the employer maintaining the fund;
- (h) "regulations of a fund" means the specific regulations governing the constitution and administration of a particular provident fund; and
- (i) "salary" includes dearness allowance, if provided for in the terms of employment, but excludes all other allowances and perquisites.

## **Recognition to provident fund and the withdrawal**

**3. (1)** The approving authority may grant recognition to a provident fund, which in his opinion satisfies the conditions provided in paragraph 4 and the rules made by the Board in this regard and may, at any time, withdraw such recognition if in his opinion, the provident fund violates any of those conditions.

**(2)** An order granting recognition shall take effect on such date specified by the approving authority as per any rules made or made for this by the Board in this behalf made date not being later than the last day of the two years in which the order is made.

**(3)** An order withdrawing recognition shall take effect from the date on which it is made.

**(4)** An order withdrawing recognition to a provident fund shall not, unless the approving authority otherwise directs, be affected by the fact that—



- (a) it is established to which the provisions of section 7(1) of the Employers and Employees (Pensions) Provisional Act, 1952 (1952) apply; or
- (b) it is established to which the Central Provident Fund Commission order under section 7(1) of the said Act, and such establishment shall submit a complete order in form 17 of the said Act to the Registrar of all orders of the provisions of such order as referred to in that section.]
- (c) the employer, subject to clause (d), shall not be entitled to recover any sum from the Fund, except where the employer:
  - (i) is exempted for insolvency or
  - (ii) satisfies the said Commission otherwise than that he is entitled to other reasonable cause before the end of the term of service specified in the regulations of the Fund;
- (d) for the purpose of clause (c), the recovery made by the employer shall be treated as:
  - (i) the contribution made by him to the individual account of the employee;
  - (ii) interest payable in respect of such contribution as per the regulations of the Fund; and
  - (iii) the accumulated balance;
- (e) the accumulated balance due to an employer shall be payable on the day for which he is employer of the employee maintaining the fund;
- (f) except as provided in clause (1) no other conditions and restrictions prescribed or imposed in the scheme in the case of an employer shall be payable to him.

#### **Recovery of contributions.**

8. (1) In respect of anything contained in paragraph (1), the approving authority may, if he thinks fit, and subject to such conditions that he thinks proper to attach to such regulations, extend exemptions by a third order to:

- (a) established by an employer either principal place of business or outside India; and
- (b) the provision of employees employed outside India does not exceed 100.

(2) In respect of anything contained in paragraph (1), an employer who satisfies the provisions:

- (a) while working in the armed forces of the State; or
- (b) while India was or employed in the national service under any law from the time being in force;



credit of any employee for an hour or less as allowed in a fair awarding each year as fixed by the Acting Director of Contributions, shall be allowed in that hour counted by the employer and included in his total income for that tax year and shall be liable to taxation.]

**Example for employer's contribution:**

E, the employer participating in a compulsory provident fund shall, in respect of his own contributions to his individual account in the fund for the tax year, be entitled to a deduction for the contribution of his total income of the amount determined in paragraph 123.

**Example for total income of accumulated balance:**

B. (1) Subject to the provisions of subparagraph (1), the accumulated balance due and payable to an employee shall be included from the contributions of the total income:

- (a) if the employer has suffered contributions on or to the employee's fund for years or years or
- (b) even if the employer had not served voluntarily, the service was terminated due to:
  - (i) the employee's disability or
  - (ii) his retirement or expiry of the employee's service, or
  - (iii) other cause beyond the control of the employer;
- (c) if, on the termination of his employment, the employer withdraws contributions with and other employees to the extent the accumulated balance due and becoming payable to him is transferred to his individual and accounts in any recognized provident fund established by such other employee or
- (d) the entire balance owing to the employee's credit is transferred to his account under a pension scheme referred to in section 124 and verified by the Acting Director.

(1) Where the accumulated balance due and payable to an employee includes contributions transferred from another recognized provident fund on basis of a previous employee or employees, the contributions, savings provided for the payment of subparagraph (1)(a) or (b) shall include the period or periods covered under the relevant previous employee or employees.

This is an accumulated balance.

B. Where the accumulated balance due to an employee is not included in total income under the provisions of paragraph 1 and being applicable, then:

- (a) the Acting Director shall include the total of the various sums of tax which would have been payable by the employee or employee in total income for each of the years commencing if the fund had not been a recognized provident fund; and
- (b) the amount by which such total exceeds the total of all sums paid by or on behalf of such employee for each of tax for such years shall be payable by the employee in addition to any other tax for which he may be liable.

the first tax year in which the accumulated balance shall have become payable.

**Breakdown of amount of tax payable on accumulated balance:**

III. In cases where paragraph I applies:

- (a) the creation of a recognized provident fund; or
- (b) any process authorized by the regulations of the fund to make payment of an accumulated balance due to employees,

shall deduct from the accumulated balance at the time of payment, the amount payable under this rule and the provisions of Chapter XII-B shall apply as if the accumulated balance were income chargeable under the head "Salaries".

**Breakdown of balance in newly recognized provident fund:**

51. (1) When recognition is accorded to a provident fund with existing balance, an account shall be made of the fund up to the day immediately preceding the day on which the recognition takes effect:

- (a) showing the balance in the credit of each employee on such day; and
- (b) containing such further particulars as may be prescribed.

(2) The accumulated balance brought to the credit of each employee:

- (a) the amount thereof to be transferred to the employee's account in the recognized provident fund (herein referred to as transferred balance); and
- (b) such "transferred balance" shall be shown as balance to his credit in the recognized provident fund on the date on which the recognition takes effect, and as paragraph (4) and paragraph (5) shall apply accordingly.

(3) Any part of the balance in the credit of each employee in the existing fund not transferred to the recognized fund shall be excluded from the recognized fund's account and shall be liable for income-tax as per the provisions of this Act, other than this Part.

52. Subject to rules made by the Board in this behalf:

- (a) the Assessing Officer shall calculate the aggregate of all amounts in the transferred balance that would have been liable to income-tax if that fund had been in force from the Fund's inception or, without regard to any tax which may have been paid on any amount;
- (b) the aggregate of amounts in transferred balance, if any, shall be deemed to be income received by the employee in the tax year in which the recognition of the fund takes effect and shall be included in the employee's total income for that tax year;
- (c) for the purpose of assessment, the transfer of the transferred balance shall be disregarded, and no other exemption or relief, by way of relief or abatement, shall be granted in respect of any sum comprised in such transferred balance.

(4) In cases of income assessment abnormally, the assessing officer may, subject to rules made in this behalf, calculate in the aggregate as provided in this paragraph (3).

(ii) Nothing in this paragraph shall affect the right of the persons administering unincorporated provident funds or dealing with it, or with the balance for the benefit of any individual employee prior to incorporation, to use amounts provided by the amounts of unincorporated provident funds.

EE. (1) The accounts of a unincorporated provident fund shall be maintained by the trustees of the fund in such form, for each period, and include such particulars, as may be prescribed.

(2) The accounts shall be available for inspection by the Income Tax authorities at all reasonable times, and the trustees shall provide the Assessing Officer with the abstracts of such accounts as may be prescribed.

#### **Appeal.**

EE. (1) An employee objecting to an order of the assessing authority not granting recognition or self-debiting recognition from a provident fund, may appeal to the Board, within sixty days of such order.

(2) The appeal shall be in such form and verified in such manner and subject to the payment of such fee as may be prescribed.

#### **Transfer of fund transferred by employee to trustee.**

EE. (1) Where an employee who maintains a provident fund, whether unincorporated or not, for the benefit of his employees and has not transferred the fund or portion of it, transfers such fund or portion to trustee or trustee for the participating employees, the transferred amount shall be deemed to be of the nature of capital expenditure.

(2) When an employee transfers the accumulated balance due to him from the fund, the portion of such balance representing the employee's share of the amount transferred to the trustee (without addition of interest and exclusion of employee's contributions and interest thereon) shall be deemed to be:

- (a) employee's expenditure under section 35;
- (b) incurred in the tax year in which the accumulated balance due to the employee is paid.

provided an arrangement for deduction of tax at source has been made from the amount of such share by the employee.

### **PART B**

#### **APPROVED CONTRIBUTIONS FUND AND TRUSTS FUND**

##### **Explanation.**

E. For the purposes of this Part, unless the context otherwise requires, "approved" and "eligible", "employee", "employer", "contributions" and "value", in relation to superannuation funds and provident funds shall have the meanings as assigned to those expressions in paragraphs (2) to (5) of Part A in relation to provident funds.

##### **Approved approved to superannuation fund and its self-debiting.**

E. (1) The approving authority may grant approval to any superannuation fund or its portion, or any provident fund, or the whole or any part, which is a self-debiting fund, the

and those provided in paragraph 3, and any withdrawal made approved in writing by the board within the time mentioned above for consent shall be approved.

(I) The approving authority shall inform the members of the board, in writing, and withdraw any approval along with the reasons and the date on which the withdrawal is to take effect.

(II) The approving authority shall inform the members of the board, in writing, and withdraw any approval along with the reasons and the date on which the withdrawal is to take effect.

(III) The approving authority shall not refuse to withdraw any approval without giving the members a reasonable opportunity of being heard.

#### **Conditions for approval.**

8. In order to erect and erect approved, a superannuation fund or a gratuity fund or the same may be, shall satisfy the following conditions, and any other conditions as may be prescribed:-

- (a) the fund shall be constituted under an irrevocable trust or trusts with a trustee or trustees having resided in India, or who at least 80% employees employed in India;
- (b) the sole purpose of the fund shall be the provision of gratuity or gratuity as the same may be, for employees in that trade or business:-
  - (i) upon their retirement at an age as specified;
  - (ii) upon resignation (before retirement);
  - (iii) on termination of employment after a minimum period of service specified in the rules of the gratuity fund or
  - (iv) for the members, children or dependants of such employees in their death;
- (c) the employees in the trade or business shall contribute to the fund;
- (d) all amounts, premium and other benefits, granted from the fund shall be payable only in India.

#### **Application for approval.**

9. (I) An application for approval of a superannuation fund or part of it, or any gratuity fund, as the same may be, shall be made in writing by the trustees to the Boarding Officer for whom the employees are liable, and shall be accompanied by-

- (a) a copy of the instrument constituting the fund and copy copies of the rules framed;
- (b) true copies of the accounts of the fund relating to a definite period (not exceeding) and must immediately preceding the date to which the said application is made; for which the accounts have been made up, if the fund has been in existence before the financial year to which the application for approval is made.

(II) In addition to the documents referred to in sub-paragraph (I), the approving authority may require such further information as it may think fit to require.

(1) If any alternative is made in the rules, regulations, orders or conditions of the fund after the date of the application for approval;

- (a) The trustees shall immediately advise such alterations to the Actuary/Officers mentioned in sub paragraph (1) and
- (b) Failure to follow such alterations may result in the approval given, if any, be deemed to be withdrawn from the date on which the relevant trust took effect, unless the approving authority orders otherwise.

#### **Gratuity deemed to be salary**

8. If any gratuity is paid to an employee during his lifetime, the gratuity shall be treated as salary paid to the employee for the purpose of this Act.

#### **Contribution of employee when deemed to be income of employee**

8. Where contributions by an employee (including the interest, if any) are repaid to the employee, the amount repaid shall be deemed for the purposes of the Act to be for the benefit of the employee if the time in which they are repaid

#### **Deductions of tax on contributions paid to an employee**

7. (1) When any contributions made by an employee to an approved superannuation fund, including interest are paid to an employee during his lifetime, such contributions when those funds are paid to him shall be (1) Under the Act, the tax on the amount repaid shall be deducted at the rate of 10% of tax applicable to the employee;

(a) during the previous three years or

(b) during the period for which the employee has a member of the fund, if the period is less than three years.

(2) The trustees shall pay the tax so deducted to the Central Government with the fund and interest, as may be provided.

#### **Deductions from grant of such contributions on behalf of employee to be included in return**

8. Where an employee deducts contributions to any the superannuation of the employee or pays or has liable any contributions to an approved superannuation fund, all such deductions or payments shall be included in the statement which is required under section 137(1)(b).

#### **Appeal**

9. (1) An employee objecting to an order of the approving authority relating to grant approval to a superannuation fund, or a grant being made, or the case may be, an individual's grant approval may appeal to the Board within sixty days of such order.

(2) The appeal shall be in such form and verified in such manner and subject to the provisions of such law, as may be provided.

#### **Liability of trustee on payment of approval of superannuation fund**

10. If a fund or a part of a fund for any reason ceases to be an approved superannuation fund, the trustees of the fund shall immediately comply with the following provisions in respect of returned amount deducted in including interest on contributions if any, before the date that sum is paid to in respect of contributions made before the fund ceases to be fund approved by the an approved superannuation fund under the provisions of this Part.

**Liabilities of trustees in connection of approval of gratuity fund.**

11. If a gratuity fund has any certain assets in her or an approved gratuity fund, the trustees shall nevertheless remain liable to the ordinary liability paid to any employee.

**Particulars to be furnished.**

12. The trustees of an approved superannuation fund or an approved gratuity fund, and any employee who contributes to such a fund shall furnish and maintain statements, particulars or information as required by written notice the Assessing Officer within the specified period, and being not more than thirty-one days from the date of the notice.

## **PART V**

### **POWER TO MAKE RULES FOR PRESIDENT FUND, SUPERANNUATION FUND AND GRATUITY FUND**

**Power of Board to make rules for fund.**

1. In addition to powers granted by Part A and Part B of this Bill, the Board may make rules for a fund (president fund or superannuation fund or gratuity fund) in respect of the following—

- (a) to provide for the statements and information to be furnished by the an applicant for approval or recognition for a fund;
- (b) to provide for the returns, statements, particulars, or information which the Assessing Officer may require from the trustees of an approved superannuation fund or from the employee;
- (c) to limit the ordinary annual and other contributions of any employee to the gratuity fund or an approved superannuation fund;
- (d) [177];

[178] to regulate investment or deposit of the income of a recognized or an approved fund;

- (e) to provide for the assessment by way of penalty of any contribution received by any employee for an acceptance of, or withdrawal of a charge upon, his beneficial interest in a recognized or an approved fund;
- (f) to determine the extent and manner of exemption from payment of tax on contributions and interest received by the individual account which employee in the specified fund or superannuation fund or gratuity fund.

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13. Provided by the Finance Act, 1944, as amended, that in its operation, clause (f) shall be subject to—

(a) to limit the contribution to a recognized president fund by employee who are contributed to the company;

(b) Section 134B. Power to make rules, rules for such fund;

- (c) to regulate investment or deposit of the income of a recognized or an approved fund; subject to the condition that no rule shall require more than 10% of the fund income to be invested in Government securities or in the fund of the Government Securities Act, 1917, or 1937;

- (b) to determine the extent and nature of exceptions from payment of tax on any payments made from a superannuation fund and the effect of approval has been withdrawn;
- (c) to provide that the withdrawal of the approval of a superannuation fund is a punitive fund, which means to initiate the suspension of the Fund as the major asset (dependent) and
- (d) to give authority when the purpose of this Part and to immediately initiate action when the suspension or approval of the funds and the administration of such funds, as it may deem appropriate.

2. All rules made under this Part shall be subject to section 233.

## **REVISED ACT**

(For section 11)

### **PART I**

#### **MINERALS**

1. Aluminium ore.
2. Apatite and phosphate ore.
3. Beryl.
4. Chromite ore.
5. Coal and lignite.
6. Columbite, niobite and other minerals of the "tantalum" group.
7. Copper.
8. Gold.
9. Gypsum.
10. Iron ore.
11. Lead.
12. Manganese ore.
13. Molybdenum.
14. Nickel ore.
15. Platinum and other precious metal and their ores.
16. Uranium and other radioactive ores.
17. Vanadium ore.
18. Zinc.
19. Silver.
20. Sulphur and its ore.
21. Tin.
22. Tungsten ore.

- 13. Greenhornes, alluvial, massive and other (barite, celestine).
- 14. Minerals bearing sulphide but none from area after exhaustion of copper and gold. Arsenite and other minerals rare.
- 15. Vanadium rare.
- 16. Zinc.
- 17. Silver.
- 18. **Barite-bearing minerals.**
  - 18.1. Barite.
  - 18.2. Celestine.
  - 18.3. Arsenite-bearing minerals.
  - 18.4. Arsenite-bearing minerals.
  - 18.5. Arsenite-bearing minerals.
  - 18.6. Sulphide.
  - 18.7. Arsenite-bearing minerals.
  - 18.8. Arsenite-bearing minerals.

## PART B

### LISTS OF ASSOCIATED MINERALS

- 1. Apatite, Beryl, Cassiterite, Chalcocite, Fluorite, Pyrochlore, Lepidolite, MnO<sub>2</sub>, Pseudobrookite, Uvarovite, Xenotime, Scheelite, Topaz, Xenotime, Bismuthite.
- 2. Bismuth, Bismutite, Tin, Vanadium and Nickel minerals.
- 3. Lead, Zinc, Copper, Cadmium, Arsenic, Antimony, Bismuth, Cobalt, Nickel, Molybdenum, and Uranium minerals, and Gold and Silver. Arsenopyrite, Chalcocite, Pyrite, Pyrochlore and Pseudobrookite.
- 4. Chromite, Hematite, Magnetite and Nickel minerals.
- 5. Kyanite, Silica, Corundum, Diatomite and Topaz.
- 6. Gold, Silver, Tin, Antimony, Bismuth and Pyrite.
- 7. Beryl, Fluorite, Chalcocite, Bismuth, and minerals of Cu, Lead and Silver.
- 8. Tin and Tungsten minerals.
- 9. Limonite, Hematite and Magnetite.
- 10. Bismuth, Bismutite, Arsenic, Nickel, Cobalt and Vanadium.
- 11. Sulphides of Copper and Lead.
- 12. Coal, Pyrite and Shale.
- 13. Magnetite and Apatite.
- 14. Magnetite and Hematite.
- 15. Tin (Bismuth and Arsenic) and Fluorite.

19. Slates, limestones, ammonite clays, lithomarge, Shaleton, Tinsolston, Galloway and Colchester slates.

#### ARTICLE XX

[Repealed 1982]

#### LIST OF ARTICLES CONTINUED

1. Iron, steel and other products up to 10.
2. Talcum, and talcum preparations, such as, toilet and shaving, eye-powder, face, cosmetic preparations for eyes and eyebrows, shaving talcum and soap.
3. Cosmetics and toilet preparations.
4. Toilet paper, toilet tissue, toilet paper and soap.
5. Apparel worn in the manufacture of which bonded processing programs (including sample for customs) to say there are made.
6. Cosmetics and toiletries.
7. Soapstones, including toilet paper, and grooming articles.
8. Fragrances.
9. Photographs, apparatus and prints.
10. Silverware, metal and glassware, cutlery, including machines, such as sugar tongs, forks, change making machines, silverware machines and implements including all machines and apparatus used in silver, silver, jewelry, watches, educational institutions, culture, stationery, books and restaurants for doing silver work and for other processing including valuing machines and valuing devices and doing silverware.
11. Metal fasteners, whether made partly or wholly of steel.
12. Nails, strong boxes, cash and steel boxes and strong iron boxes.
13. Cotton foam sponge and polyurethane foam.
14. Crown cork, for other kinds of cork, rubber, polyethylene or any other material.
15. Fiberglass tape for packaging or other things of cork, rubber, polyethylene or any other material.

#### ARTICLE XXI

[Repealed 1982]

#### INCOME TAXES

##### A. Life Insurance Business

Profits of life insurance business to be computed separately.

1. If a person is engaged in life insurance business during the tax year, the profits and gains of such business shall be computed separately from profits and gains of any other business.

### Computation of profits of life insurance business.

2. (1) The profits and gains of life insurance business shall be the netted average of the surplus after adjusting the surplus or deficit disclosed by the annual valuation made as per the Insurance Act, 1938 (18 of 1938) for the last intermediate period ending before the commencement of any year, as or to, mutually agreed, if any surplus or deficit from any earlier intermediate period.

(2) Any expenditure which is ascertained under section 14 in respect of depreciation and gains of a business, shall be added to such profits and gains of life insurance business.

### Adjustment of tax paid by deduction of interest.

3. Where an assessment of the life insurance business payable is made, based on the netted average of a surplus disclosed by a valuation for any intermediate period according to the provision made in computing the income tax payable for that year, such as:-

- (a) may be given as per section 192 for the income tax paid in the preceding two years;
- (b) be given for the netted average of the income tax paid by deduction of interest from interest on amounting or otherwise during such period.

### 3. (Other insurance business)

### Computation of profits and gains of other insurance business.

4. (1) The profits and gains of any insurance business of life other than insurance shall be the profits before tax and expenditures as disclosed in the profit and loss account prepared as per the Insurance Act, 1938 (18 of 1938) or the rules made thereunder of the Insurance Regulatory and Development Authority Act, 1999 (15 of 1999) or the regulations made, subject to the following adjustments:-

- (a) subject to the other provision of "This paragraph", any expenditure or allowance including any amount debited to profits and loss account either by way of a provision for any tax, dividend interest or any other provision, as may be provided, which is ascertainable under section 24 to 28 shall be added back;
- (b) any gain or loss from realisation of investments shall be added or deducted, as the case may be, if not already included or debited to the profit and loss account;
- (c) any provision for fluctuation in investment value debited to the profit and loss account shall be added back; and
- (d) such amount entered into a return for unexpired risk as may be provided shall be allowed as a deduction.

(2) The amount payable under section 17, which is added under sub paragraph (1) shall be adjusted as deduction on the tax paid in which it is normally paid.

"(1) The amount not deductible under subsection (a) of section 11(b), which is equal under sub-paragraph (1)(a), shall be allowed independently as a deduction in a taxpayer's computation with the provisions of the said subsection, in the manner the [ ]

#### C. Other provisions

#### Profits and gains of non-resident persons.

8. (1) The profits and gains of a person not resident in India shall be computed in his insurance business through FA branches in India only, in the absence of more reliable data, he derived in his total operations of his global system which starts from the proportion which his premium income derived from India bears to his total premium income.

(2) In this paragraph, the global income in relation to his insurance business of a person not resident in India shall be computed as per this Act by computing the profits and gains of his insurance business started up in India.

#### Definitions.

9. (1) For the purpose of this section:-

- (a) "branch" means branch, office and office;
- (b) "life insurance business" means life insurance business as defined in section 11(1) of the Insurance Act, 1938 (1 of 1938).

(2) Reference to the Insurance Act, 1938 (1 of 1938) in this Schedule regarding the Life Insurance Corporation of India shall be treated as reference to that Act or section 85 of the Life Insurance Corporation Act, 1956 (11 of 1956).

#### EXERCISES

[See section 11]

#### DEDUCTION IN RESPECT OF LIFE INSURANCE PREMIUM, CONTRIBUTION TO PROVIDENT FUND, SUBSCRIPTION TO CERTAIN SOCIETY SHARE, ETC.

#### Amount qualifying as deduction.

10. For a tax year, the following amounts shall qualify as deduction for the purpose of section 11(b):-

- (a) premium paid for a life insurance policy:-
  - (i) in the case of an individual, on the of such individual, spouse of the individual and any child of the individual;
  - (ii) in the case of a Hindu undivided family, on life of any member of the Hindu undivided family;
- (b) amount paid for a provident fund, contributed out of the salary plus interest in accordance with the of the individual, spouse of the individual and any child of the individual, and such amount shall not exceed an amount for a year such as provided in the of the amount;
- (c) amount deducted from salary payable by or on behalf of the Government to any individual for carrying of research, scientific or technical operations for the purpose of industry, to the extent of 20% of salary;

- (a) contributions for an individual for any provident fund to which the Provident Funds Act, 1925 (19 of 1925) applies;
- (b) contributions for an account with any provident fund set up and notified by the Central Government for the name of:—
  - (i) in the case of an individual, such individual, spouse of that individual and any child of that individual;
  - (ii) in the case of a Hindu undivided family any member thereof;
- (c) contributions for any provident for a recognised provident fund;
- (d) contributions for an employee for an approved superannuation fund;
- (e) subscriptions for any society or deposit scheme notified by the Central Government to the extent of an individual or any person of that class, who or any person shall for income-tax purposes be the legal guardian of the children or minors;
- (f) subscriptions for savings certificates as mentioned in section 55A of the Government Savings Banks Act, 1953 (14 of 1953) as may be notified by the Central Government;
- (g) contributions for participation in Unit-linked Insurance Plan, 1971 specified by Schedule II of the Unit Trust of India (Transfer of Undertaking and Repeal) Act, 1981 (58 of 1981),—
  - (i) in the case of an individual, in the name of such individual, spouse of that individual and any child of that individual;
  - (ii) in the case of a Hindu undivided family, in the name of any member thereof;
- (h) contributions for participation in unit-linked investment plan of Life Insurance Corporation Mutual Fund, referred to in Schedule VII (Table A, Nos. 23 or 24), as may be notified by the Central Government,—
  - (i) in the case of an individual, in the name of such individual, spouse of that individual and any child of that individual;
  - (ii) in the case of a Hindu undivided family, in the name of any member thereof;
- (i) sums paid in effect or to happen to form a contribution for unit-linked plan of the Life Insurance Corporation in any of the manner notified by the Central Government;
- (j) an investment in any notified unit Mutual Fund referred to in item 23 or 24 of the Table in Schedule VII or from the Administration of the specified company under any plan for declared to participate with such scheme and fund by the Central Government;
- (k) contributions for any individual for any provident fund set up by:—
  - (i) any Mutual Fund referred to in Schedule VII (Table A, Nos. 23 or 24) or;
  - (ii) the Administration or;

- (iii) the specified company, as may be notified by the Central Government;
- (iv) subscription to a deposit scheme or contribution to a provident fund set up by the National Housing Bank established under section 7 of the National Housing Bank Act, 1947 (33 of 1947), as may be notified by the Central Government;
- (v) subscription to any deposit scheme of:
  - (a) a public sector company engaged in providing long term finance for construction or purchase of houses in India for residential purposes; or
  - (b) an authority established in India by any law for the purpose of meeting with and satisfying the need for housing accommodation or for the purpose of planning, development or improvement of cities, towns and villages, as the case may be;
 as may be notified by the Central Government;
- (vi) income from (including any interest) from an investment or purchase of movable nature (made by an individual or any University, college, school or other educational institutions situated in India and the term of maturity more or less than) for full term maturity of any term to which clause (v) is applicable;
- (vii) payment made by any bank or institution of a registered house property for the term to which clause (v) is applicable to any under (b) clause "house or house property" (as which must, if it has not been notified the term residence of the taxpayer, have been chargeable to tax under that head), subject to satisfaction of conditions laid down in paragraph 3;
- (viii) term deposit for a fixed period of not less than five years with a scheduled bank, and which term deposit scheme formed and notified by the Central Government;
- (ix) subscription to bonds issued by the National Bank for Agriculture and Rural Development, as may be notified by the Central Government;
- (x) deposit in an account under the Banker's Current Savings Scheme (Rule 3(24));
- (xi) the term to which the account under the Pradhan Mantri Time Deposit Scheme, 1991;
- (xii) contribution by an employee of the Central Government to an additional account or fund in or out from FID of the Finance Board Employees and Development Authority Act, 1977 (22 of 1977) of the provident scheme notified by the Central Government, as referred in its section 14:
  - (a) for a fixed period of not less than three years; and
  - (b) which is as per the scheme as may be notified by the Central Government for the purposes of this clause;
- (xiii) contribution made from income chargeable to tax in effect as being an income or received for any activity of the Government Corporation of India or any other company for converting proceeds from the fund referred in the Schedule FID (Rule 3(24), 1991).

(iii) contributions made by an individual in a period to which sub-paragraph (i) of the Central Government, in the amount of:-

(a) 50% of income including chargeable allowances, after taking into account the provisions for including all other allowances and perquisites, during the tax year for the case of an employee of the Central Government or any other employee; or

(b) 20% of gross total income during the tax year for the case of any other individual;

(ii) contributions to:-

(a) equity shares or debentures forming part of any eligible issue of capital approved by the Board on an application made by a public company or an individual to any eligible issue of capital by any public financial institution in the prescribed form;

(b) any issue of any mutual fund referred to in the heading VII (Table 6B, Sec. 25 or 27) and approved by the Board on an application made by such mutual fund to the prescribed form and if the amount of subscription to such issue is subscribed only in the eligible form of capital of any company;

#### **Payments on insurance policy**

2. (1) The deduction shall apply only in so much of any proceeds on which payment under any life insurance policy, where there is contract for a deferred annuity,:-

(a) as is up to 10% of the actual capital sum assured, in respect of a policy issued on or before the 1st March, 2012;

(b) as is up to 10% of the actual capital sum assured, in respect of a policy issued on or after the 1st April, 2012;

(c) as is up to 10% of the actual capital sum assured, if the policy is issued on or after the 1st April, 2012 and where such policy covers the life of:-

(i) a person with disability or a person disabled or referred to in clause (i);

(ii) a person suffering from a disease or ailment specified in the table under policy number 123;

(2) In this paragraph, "actual capital sum assured" shall mean the minimum actual amount under the policy on happening of the insured event at any time during the term of the policy and (taking into account):-

(a) the value of any premium agreed to be returned on

(b) any beneficial receipt issued on redemption or withdrawal of the sum actually assured, which is or may be received under the policy in any form;

#### **Payments made for purchase or construction of residential house property**

3. The deduction in respect of amount spent for purchase or construction of a residential house property as provided in paragraph (1) shall:-

(a) include payments that are made towards:- by way of:-

- (iv) any institution or part payment of the amount due under any will, bequest or other subject or any development, settlement, trust or other authority engaged in the conservation and sale of human property on voluntary basis; or
- (v) any institution or part payment of the amount due to any company or corporation except if subject the amount is a contribution or transfer towards the cost of the human property referred to here; or
- (vi) repayment of the amount borrowed by the institute further:
  - (i) the Central Government or any State Government; or
  - (ii) any body, including a incorporated body; or
  - (iii) the Life Insurance Corporation; or
  - (iv) the National Housing Board; or
  - (v) any public company formed and registered in India with the main object of carrying on the business of providing long term finance for construction or purchase of houses in India for residential purposes which is eligible for deduction under section 80C; or
  - (vi) any company in which the public are substantially interested in any corporation, society, whose such company or corporation society is engaged in the business of financing the construction of houses; or
  - (vii) the company to have such certificate is issued as to be or a house or a corporation or any other body established or constituted under a Central Act or State Act; or
  - (viii) the company or the company whose such certificate is a public company or a public service company or a University which is owned by Govt. or is college affiliated to such University or is local authority or a corporation or society; or
- (vii) stamp duty, registration fee and other expenses for the purpose of transfer of such human property to the institute;
- (viii) any amount any payment made or to be made:
  - (i) the chairman, for cost of share and initial deposit which a share holder of a company or a member of a corporation society, has to pay for becoming such shareholder or member; or
  - (ii) the cost of any addition or alteration to or extension or repair of the human property which is owned and after the issue of the completion certificate in respect of the human property by the authority competent in that or, or after the human property is taken over from the owner, is accepted by the Government or any other person on his behalf, or from his estate; or
- (ix) any expenditure in respect of which deduction is allowable under section 80.



| Sl. No. | Nature of payment                                                                      | Conditions for deduction provided in columns B or C of the said Table                                                                                                                                                                                                                                                                                       |
|---------|----------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 4.      | B.                                                                                     | C.                                                                                                                                                                                                                                                                                                                                                          |
|         | by a public company or by any public financial institution, have not approved by Board | (a) such charges or disbursements shall not be allowed as banking charges by the persons on the date on which the same are incurred in relation to the acquisition or disposal of or in the acquisition or disposal of shares, debentures or other securities of the company or of other financial institutions, as the case may be, of the public company. |

**Taxation of profits subject deduction already allowed**

8. Subject to deductions in the nature of payments specified in column B of the Table below, the following shall be the conditions applicable in column C of the said Table, as embodied in each sub-point, the minimum amount which has to be so paid has to be in the manner as provided in column D of the said Table:

**TABLE**

| Sl. No. | Nature of payment                                                                                                                                                                     | Deduction for interest                                                                                                                                                                                     | Deduction and amount of dividend for the year in which payment is made or is made                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 4.      | B.                                                                                                                                                                                    | C.                                                                                                                                                                                                         | D.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 1.      | <p>(a) Deposit in an account under the Reserve Bank of India Scheme, 1950;</p> <p>(b) Fixed deposit term deposit in an account under the Fixed Deposit Term Deposit Scheme, 1951.</p> | If any amount, including interest received, is deposited in the account specified in column B, in accordance with the conditions, before the expiry of the period of deposit from the date of the deposit. | <p>(a) The interest on such deposit shall be deemed to be the income of the depositor of the year in which the deposit is made or is made and shall be liable to tax in the said year;</p> <p>(b) the amount liable to tax, as referred in sub-point (a) shall not include the following amounts:-</p> <p>(i) any amount of tax, which has been deducted in the total income of the depositor of the year in which the deposit is made or is made; and</p> <p>(ii) any amount received by the depositor in the year of the year in which the deposit is made or is made.</p> |

| 18<br>Sec. | Nature of amount                                                                                                                                                                                                              | Deductible for<br>charitable                                                                                                                                                                                                                                                                                                                                                                                                                   | Amount and nature of<br>deduction for 1964 (year in<br>which contribution is deductible)                                                                                                                                                                                     |
|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 4          | 18                                                                                                                                                                                                                            | 19                                                                                                                                                                                                                                                                                                                                                                                                                                             | 20                                                                                                                                                                                                                                                                           |
|            |                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                | <p>such amount, when those amounts, if any, carried forward, are distributed, shall be treated as part of the income for the tax year or years preceding such tax year.</p>                                                                                                  |
| 2          | <p>Contributions to effect or keep in force a contract for any annuity plan of Life Insurance Corporation of India or any other person's life insurance plan which has been referred to in Schedule VI (Table A, No. 12).</p> | <p>When any amount standing to the credit of the estate or to the private fund, or respect of which a deduction has been allowed, together with the interest or income accrued or credited to the income account, if any, is received by the assessee or his nominee:</p> <p>(a) an amount of the sum expended for annuity plan whether in whole or in part, in any tax year or</p> <p>(b) as much as is expended during the annuity plan.</p> | <p>The amount equal to the whole of the amount referred to in column C (a) or (b) shall be deemed to be the income of the assessee or his nominee, in the tax year in which such withdrawal is made or payment is received, and shall be liable to tax in the said year.</p> |
| 3          | <p>Contributions by an individual to a pension scheme notified by the Central Government.</p>                                                                                                                                 | <p>When any amount standing to the credit of the estate or to the private fund, or respect</p>                                                                                                                                                                                                                                                                                                                                                 | <p>The whole of the amount referred to in column C (a) or (b) shall be deemed to be the income of the assessee or his nominee, in the tax year in</p>                                                                                                                        |



- (iii) "management" means that shall not include any person in employment of bank;
- (iv) "management" shall include:—
  - (a) a policy of management in the case of partnership and its partners or the board of such institution or a shareholder of a Hindu undivided family providing the payment of specified sums on the stipulated day of maturity. It shall not be able to alter any such date notwithstanding that the policy of management provides only for the return of principal paid back or without any interest thereon in the event of such person dying before the said stipulated date;
  - (b) a policy of management followed by an institution or a company or a Hindu undivided family for the benefit of a person with the object of enabling the person after he has attained majority to receive his share in the estate by adopting the policy and on his being after a date (after such adoption) specified in the policy to the effect;
- (v) "Life Insurance Corporation" means the Life Insurance Corporation of India established under the Life Insurance Corporation Act, 1956 (17 of 1956);
- (vi) "public company" shall have the same meaning as assigned to it in section 3(71) of the Companies Act, 1956 (18 of 1956);
- (vii) "securities" means a Government security as defined in section 2(7) of the Government Securities Act, 1955 (18 of 1955);
- (viii) "specified company" means a company as referred to in section 2(9) of the Unit Trust of India (Transfer of Undertaking and Repeal) Act, 1953 (18 of 1953);
- (ix) "taxation" shall, in the context of such institution mentioned in the section 2(71)(b) of the Insurance Act, 1956 (18 of 1956);
- (x) "unpaid issue of capital" means a loan made by a public company forward and registered in India or a public financial institution and the entire proceeds of the loan are utilized wholly and exclusively for the purpose of any business referred to in section 2(4)(b) of the Companies Act, 1956 (18 of 1956);
- (xi) "public financial institution" shall have the same meaning as assigned to it in section 2(71) of the Companies Act, 1956 (18 of 1956).

## **ARTICLE 17A**

[See section 17B]

### **PERMITTE MODES OF INVESTMENT OR DEPOSIT**

Money or assets of investment or deposits by a registered non-profit organisation.

6. The modes of investing or depositing the money referred to in section 17B shall be the following:—

- (1) investment in saving or fixed deposit or in deposit 2% of the Government Savings Certificate Act, 1958 (19 of 1958) and any other securities

corporate assets owned by the Central Government under the Small Savings Regulations of that Government.

- (12) deposits in any account with the State Bank of India;
- (13) deposits in any account with a scheduled bank or a co-operative society engaged in carrying on the business of banking (including a co-operative bank mortgage bank or a co-operative bank development bank);
- (14) investments in units of the Unit Trust of India;
- (15) investments in any security for money constituted or issued by the Central Government or a State Government;
- (16) investments in debentures issued by or on behalf of any company or corporation with the principal interest and the interest thereon lawfully and irrevocably guaranteed by the Central Government or by a State Government;
- (17) investments in deposits in any public sector company subject to the condition that where an investment in deposits in any public sector company has been made and such public sector company ceases to be a public sector company:
  - (a) such investment made on the shares of such company shall be deemed to be an investment made under this clause for three years from the date on which such public sector company ceases to be a public sector company;
  - (b) such other investment in deposit shall be deemed to be an investment in deposits made under this clause for the period up to the date on which such investment in deposit becomes repayable by such company;
- (18) deposits with or investments in any bonds issued by a financial corporation which is engaged in providing long-term finance for industrial development in India and which is eligible for inclusion under section 10(1);
- (19) deposits with or investments in any bonds issued by a public company formed and registered in India with the main object of carrying on the business of providing long-term finance for construction of machines or facilities in India for industrial purposes and which is eligible for inclusion under section 10(1);
- (20) deposits with or investments in any bonds issued by a public company formed and registered in India with the main object of carrying on the business of providing long-term finance for research and education in India;
- (21) investments in immovable property;
- (22) deposits with the Industrial Development Bank of India established under the Industrial Development Bank of India Act, 1949 (18 of 1949);
- (23) investments in the units issued under any scheme of the Industrial Fund referred to in Schedule VI (Table A) Nos. 201 or (Table A) Nos. 211;
- (24) any transfer of deposits to the Public Account of India;
- (25) deposits made with a bank being constituted in India by or under any law enacted after the commencement of this part and by or for the use of any

forwarding investment information to the purveyor of planning, development or improvement of cities, towns and villages, or the State;

(16) investment by way of acquiring equity shares of a company as defined in section 2(82) of the Companies Act, 1956 (22 of 1956);

(17) investment made by a company which exchange referred to in section 2(30) of the Securities Contracts (Regulation) Act, 1956 (55 of 1956) or a person referred to as investor in the equity share capital of a company, wherein referred to as investor;

(a) which is engaged in trading with securities or security derivatives with the securities market;

(b) which does not primarily maintain deposits that are required to be exchanged for the sole purpose of facilitating the purchase of the investment in question and has not exchanged through the investor as per the direction or guidelines issued under the Securities and Exchange Board of India Act, 1992 (15 of 1992) by the Securities and Exchange Board of India established under section 3 of that Act; and

(c) in which at least 75% of equity shares are held by the investor and the Indian equity shares are held by members of such investor;

(18) investment made by a person, and listed under section 2 of the Payment and Settlement Systems Act, 2007 (31 of 2007) as the equity share capital or funds or derivatives of a company;

(a) which is engaged in operations of retail payments systems or digital payments infrastructure or similar activities in India and abroad and is approved by the Reserve Bank of India for this purpose; and

(b) in which at least 75% of equity shares are held by National Payment Corporation of India;

(19) investment made by a person, and listed under section 2 of the Payment and Settlement Systems Act, 2007 (31 of 2007) as the equity share capital or funds or derivatives of Open Norms Issuer Entity Company Ltd., being a company incorporated under section 72 read with section 811 of the Companies Act, 2013 (18 of 2013), for participating in network based open payment models which may be digital payments and to request for digital payments in India;

(20) investment by way of acquiring equity shares of an Issuer for an Issuer;

(21) investment by way of acquiring shares of National Skill Development Corporation;

(22) investment in debt instruments issued by the Infrastructure Finance Company regulated with the Reserve Bank of India;

(23) investment in "Money Certificate" as defined in clause (i) of paragraph 1 of the Reserve Bank Money Rules, 2015, published in the Official Gazette vide notification number G.S.R. 3171 E, dated the 18th October, 2015;

(24) investment by way of Acquiring Units of Foreign Investment Promotion Fund;

- (133) shares in a public sector company;
- (134) any assets held by the trust or institution where such assets form part of the corpus of the trust or institution as on the 1st June, 1973;
- (135) any assets, being either shares in a public company, held by any authority or other educational institution or any hospital or other medical institution where such assets form part of the corpus of any University or other educational institution or any hospital or other medical institution as on the 1st June, 1974, where it was apparent at that time under the provisions of various Acts of the Government, Act, 1961 (19 of 1961);
- (136) any amounts in the trust, forming part of the corpus mentioned in sub-paragraphs (134) or (135), by way of loans shown allotted to the trust or institution;
- (137) any assets being advances made by or on behalf of any company or corporation acquired by the trust or institution before the 1st March, 1983;
- (138) voluntary contributions received and maintained in the form of gratuity payments or gratuity scheme or by the Board from its institutions specified;
- (139) any asset, not being an investment as defined in any of the trusts or trusts specified in sub-paragraphs (1) to (132), where such asset is not so held up to one year from the end of the tax year in which such asset is acquired;
- (140) any funds representing the profits and gains of business, being profits and gains of any tax year referred to the tax year commencing on the 1st April, 1974 or any subsequent tax year, however, where it has any subsequent addition to profits and gains of business, these provisions shall not apply unless it includes separate books of account in regard to such business.

### **Interpretation.**

#### **2. For the purposes of this Schedule:-**

- (a) "any form of income" means any form of income where the form under which income is earned or obtained provides for expenditure along with income in the form of a part of or out of the form;
- (b) "public company" shall have the same meaning as assigned to it in section 3(71) of the Companies Act, 2013 (18 of 2013);
- (c) "educational institution" means a project for providing public utility, education and research, including solid waste management, waste disposal and other services to the public;
- (d) "immovable property" does not include any machinery or plant (other than installation or plant installed in a building for the commercial purpose of the building) or any other attached to or dependent on the building or anything attached to the same;

- 12) "Innovation" shall mean such intellectual property as may be created by the Government of India in the Ministry of Science and Technology;
- 13) "Innovation" shall mean such Technology Business Incubation in Science and Technology Entrepreneurship Park as created by the Government of India in the Ministry of Science and Technology.